

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES				1. REQUISITION NO.		PAGE 1 OF 97	
OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30							
2. CONTRACT NO.		3. AWARD/EFFECTIVE DATE		4. ORDER NO.		5. SOLICITATION NUMBER	
						36C26225R0018	
6. SOLICITATION ISSUE DATE						03-12-2025	
7. FOR SOLICITATION INFORMATION CALL:		a. NAME Michael Williams				b. TELEPHONE NO. (No Collect Calls) (520) 792-1450, x1-2586	
						8. OFFER DUE DATE/LOCAL TIME 03-31-2025 1500 PST	
9. ISSUED BY Department of Veterans Affairs NCO 22 - Network Contracting 3601 S. 6th Avenue Tucson AZ 85723				CODE 36C262		10. THIS ACQUISITION IS	
				☐ UNRESTRICTED OR ☒ SET ASIDE: 100 % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ELIGIBLE UNDER THE WOMEN-OWNED SMALL BUSINESS PROGRAM ☐ HUBZONE SMALL BUSINESS ☐ EDWOSB ☒ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS ☐ 8(A)		NAICS: 621910 SIZE STANDARD: \$22.5 Million	
11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700) ☐		13b. RATING N/A	
						14. METHOD OF SOLICITATION ☐ RFQ ☐ IFB ☒ RFP	
15. DELIVER TO Department of Veterans Affairs Southern Arizona VA Healthcare System 3601 S. 6th Avenue Tucson AZ 85723		CODE 36C262		16. ADMINISTERED BY Department of Veterans Affairs NCO 22 - Network Contracting 3601 S. 6th Avenue Tucson AZ 85723		CODE 36C262	
17a. CONTRACTOR/OFFEROR		CODE		FACILITY CODE		18a. PAYMENT WILL BE MADE BY	
						This is accomplished through the Tungsten Network located at: http://www.fsc.va.gov/einvoice.asp This is mandatory and the sole method for submitting invoices. PHONE: FAX:	
TELEPHONE NO.		UEI:		EFT:		18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM	
☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER							
19. ITEM NO.		20. See CONTINUATION Page SCHEDULE OF SUPPLIES/SERVICES		21. QUANTITY		22. UNIT	
		Non-Emergent Ground Ambulance Services See Schedule B				23. UNIT PRICE	
						24. AMOUNT	
		(Use Reverse and/or Attach Additional Sheets as Necessary)					
25. ACCOUNTING AND APPROPRIATION DATA See CONTINUATION Page				26. TOTAL AWARD AMOUNT (For Govt. Use Only) \$0.00			
☒ 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA				☒ ARE ☐ ARE NOT ATTACHED.			
☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA				☐ ARE ☐ ARE NOT ATTACHED			
☒ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN <u>1</u> COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED				☐ 29. AWARD OF CONTRACT: REF. _____ OFFER DATED _____, YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN IS ACCEPTED AS TO ITEMS:			
30a. SIGNATURE OF OFFEROR/CONTRACTOR				31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)			
30b. NAME AND TITLE OF SIGNER (TYPE OR PRINT)		30c. DATE SIGNED		31b. NAME OF CONTRACTING OFFICER (TYPE OR PRINT) Jarrod Washington Contracting Officer		31c. DATE SIGNED	

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SECTION B - CONTINUATION OF SF 1449 BLOCKS

B.1 CONTRACT ADMINISTRATION DATA

1. Contract Administration: All contract administration matters will be handled by the following individuals:

a. CONTRACTOR:

b. GOVERNMENT: Contracting Officer 36C262 Jarrod Washington
Department of Veterans Affairs
NCO 22 - Network Contracting
3601 S. 6th Avenue
Tucson AZ 85723

2. CONTRACTOR REMITTANCE ADDRESS: All payments by the Government to the contractor will be made in accordance with:

☒ 52.232-33, Payment by Electronic Funds Transfer—System For Award Management, or

☐ 52.232-36, Payment by Third Party

3. INVOICES: Invoices shall be submitted in arrears:

a. Quarterly ☐

b. Semi-Annually ☐

c. Other ☒ 30 Days

4. GOVERNMENT INVOICE ADDRESS: All Invoices from the contractor shall be submitted electronically in accordance with VAAR Clause 852.232-72 Electronic Submission of Payment Requests.

5. ACKNOWLEDGMENT OF AMENDMENTS: The offeror acknowledges receipt of amendments to the Solicitation numbered and dated as follows:

AMENDMENT NO	DATE

B.2 PRICE/COST SCHEDULE

This is a fixed-price, Indefinite Delivery, Indefinite Quantity, (IDIQ) contract. No obligation beyond the minimum guaranteed amount specified below will be incurred by the Department of Veteran Affairs except for services that have been rendered. Services furnished under the contract shall be ordered and funded by issuance of individual task orders by Network Contracting Office 22.

The amounts listed below are for the entire term of the contract, which includes the base period and any exercised option periods. The minimum guaranteed amount for this contract is \$10,000.00. The maximum aggregate value of orders that can be placed under this contract is \$21,522,154.50. The Government does not guarantee that it will place any orders under this contract more than the guaranteed minimum amount.

ITEM INFORMATION

ITEM NUMBER	DESCRIPTION OF SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0001	Contractor shall provide non-emergent Basic Life Support (BLS), Advanced Life Support (ALS), and Critical Care Transport (CCT) ambulance services on an as needed basis in accordance with all federal, state, and local regulations. Contract Period: Base POP Begin: 05-01-2025 POP End: 09-30-2025 PRINCIPAL NAICS CODE: 621910 - Ambulance Services PRODUCT/SERVICE CODE: V225 - Transportation/Travel/Relocation - Travel/Lodging/Recruitment: Ambulance.	5.00	MO		
0001AA	Basic Life Support, Non-Emergency Transport Services Provide transport to patients who do not require extra support or cardiac monitoring. staffed by two emergency medical technicians (EMTs) who have training in basic emergency medical care such as basic airway management, use of an automated external defibrillator and basic drug administration (base rate includes first 50 miles). One-way trip is equivalent to one each for the unit of issue. Estimated quantities. Estimated quantities. Price per one way trip: Contract Period: Base POP Begin: 05-01-2025 POP End: 09-30-2025 PRINCIPAL NAICS CODE: 621910 - Ambulance Services PRODUCT/SERVICE CODE: V225 - Transportation/Travel/Relocation - Travel/Lodging/Recruitment: Ambulance.	315.00	TRP		
0001AB	(Advanced Life Support Emergency Transport, Level 1 (ALS 1) Advanced Life Support (ALS) ambulances transport patients who	105.00	TRP		

need a higher level of care during transport above those services provided by a BLS ambulance. The unit is staffed by at least one paramedic who has more than 1,000 hours of education and training and are qualified to render advanced life support to patients such as advanced airway management, drug administration and cardiac monitoring under the direction of a hospital (base rate to include first 50 miles). One-way trip is equivalent to one each for the unit of issue. Estimated quantities.
 Price per one-way trip:
 Contract Period: Base
 POP Begin: 05-01-2025
 POP End: 09-30-2025
 PRINCIPAL NAICS CODE: 621910 - Ambulance Services
 PRODUCT/SERVICE CODE: V225 -
 Transportation/Travel/Relocation - Travel/Lodging/Recruitment:
 Ambulance.

0001AC	56.00	TRP		
Critical Care Transport (Upper-Level Care) Specialty Care Transport (SCT) – As defined by the Centers for Medicare & Medicaid Services (CMS) — is interfacility transport of a critically injured or ill beneficiary by a ground ambulance vehicle including the provision of medically necessary supplies and services, at a level of service beyond the scope of the EMT-Paramedic SCT is necessary when a beneficiary's condition requires ongoing care that must be furnished by one or more health professionals in an appropriate specialty area, for care (base rate to include first 50 miles). One-way trip is equivalent to one each for the unit of issue. Estimated quantities. Price per one-way trip: Contract Period: Base POP Begin: 05-01-2025 POP End: 09-30-2025 PRINCIPAL NAICS CODE: 621910 - Ambulance Services PRODUCT/SERVICE CODE: V225 - Transportation/Travel/Relocation - Travel/Lodging/Recruitment: Ambulance.				
0001AD	56.00	TRP		
Dry Run (Cancellation with less than 30-minute advanced notification). Estimated quantities. Price per trip: Contract Period: Base POP Begin: 05-01-2025 POP End: 09-30-2025 PRINCIPAL NAICS CODE: 621910 - Ambulance Services PRODUCT/SERVICE CODE: V225 - Transportation/Travel/Relocation - Travel/Lodging/Recruitment: Ambulance.				
0001AE	105.00	TRP		
Bariatric Transport (>300 lbs.). Estimated quantities. Price per trip: Contract Period: Base				

POP Begin: 05-01-2025 POP End: 09-30-2025 PRINCIPAL NAICS CODE: 621910 - Ambulance Services PRODUCT/SERVICE CODE: V225 - Transportation/Travel/Relocation - Travel/Lodging/Recruitment: Ambulance.			
0001AF	7.00	TRP	
Incomplete Trip (Cancellation at door). Estimated quantities. Price per trip: Contract Period: Base POP Begin: 05-01-2025 POP End: 09-30-2025 PRINCIPAL NAICS CODE: 621910 - Ambulance Services PRODUCT/SERVICE CODE: V225 - Transportation/Travel/Relocation - Travel/Lodging/Recruitment: Ambulance.			
0001AG	700.00	MI	
Mileage Trip Outside the Base Rate. Estimated quantities. Price per mile: \$7.50 Contract Period: Base POP Begin: 05-01-2025 POP End: 09-30-2025 PRINCIPAL NAICS CODE: 621910 - Ambulance Services PRODUCT/SERVICE CODE: V225 - Transportation/Travel/Relocation - Travel/Lodging/Recruitment: Ambulance.			
0001AH	70.00	EA	
Wait Time (More than 30 minutes shall be paid in 30-minute increments). Estimated quantities. Price per 30 minutes: Contract Period: Base POP Begin: 05-01-2025 POP End: 09-30-2025 PRINCIPAL NAICS CODE: 621910 - Ambulance Services PRODUCT/SERVICE CODE: V225 - Transportation/Travel/Relocation - Travel/Lodging/Recruitment: Ambulance.			
0001AJ	1.00	JB	
Emergency Services-Over and Above Repair of Unforeseen Requirements. Charges for repair, labor, and parts shall originate only when required and upon approval being granted by the Contracting Officer. Contract Period: Base POP Begin: 05-01-2025 POP End: 09-30-2025 PRINCIPAL NAICS CODE: 621910 - Ambulance Services PRODUCT/SERVICE CODE: V225 - Transportation/Travel/Relocation - Travel/Lodging/Recruitment: Ambulance.			

1001	12.00	MO	Contractor shall provide non-emergent Basic Life Support (BLS), Advanced Life Support (ALS), and Critical Care Transport (CCT) ambulance services on an as needed basis in accordance with all federal, state, and local regulations. Contract Period: Option 1 POP Begin: 10-01-2025 POP End: 09-30-2026 PRINCIPAL NAICS CODE: 621910 - Ambulance Services PRODUCT/SERVICE CODE: V225 - Transportation/Travel/Relocation - Travel/Lodging/Recruitment: Ambulance.
1001AA	540.00	TRP	Basic Life Support, Non-Emergency Transport Services Provide transport to patients who do not require extra support or cardiac monitoring. staffed by two emergency medical technicians (EMTs) who have training in basic emergency medical care such as basic airway management, use of an automated external defibrillator and basic drug administration (base rate includes first 50 miles). One-way trip is equivalent to one each for the unit of issue. Estimated quantities. Estimated quantities. Price per one way trip: Contract Period: Option 1 POP Begin: 10-01-2025 POP End: 09-30-2026 PRINCIPAL NAICS CODE: 621910 - Ambulance Services PRODUCT/SERVICE CODE: V225 - Transportation/Travel/Relocation - Travel/Lodging/Recruitment: Ambulance.
1001AB	180.00	TRP	(Advanced Life Support Emergency Transport, Level 1 (ALS 1) Advanced Life Support (ALS) ambulances transport patients who need a higher level of care during transport above those services provided by a BLS ambulance. The unit is staffed by at least one paramedic who has more than 1,000 hours of education and training and are qualified to render advanced life support to patients such as advanced airway management, drug administration and cardiac monitoring under the direction of a hospital (base rate to include first 50 miles). One-way trip is equivalent to one each for the unit of issue. Estimated quantities. Price per one-way trip: Contract Period: Option 1 POP Begin: 10-01-2025 POP End: 09-30-2026 PRINCIPAL NAICS CODE: 621910 - Ambulance Services PRODUCT/SERVICE CODE: V225 - Transportation/Travel/Relocation - Travel/Lodging/Recruitment: Ambulance.
1001AC	96.00	TRP	Critical Care Transport (Upper-Level Care) Specialty Care Transport (SCT) – As defined by the Centers for Medicare & Medicaid Services (CMS) — is interfacility transport of a critically injured or ill beneficiary

by a ground ambulance vehicle including the provision of medically necessary supplies and services, at a level of service beyond the scope of the EMT-Paramedic SCT is necessary when a beneficiary's condition requires ongoing care that must be furnished by one or more health professionals in an appropriate specialty area, for care (base rate to include first 50 miles). One-way trip is equivalent to one each for the unit of issue.

Estimated quantities.

Price per one-way trip:

Contract Period: Option 1

POP Begin: 10-01-2025

POP End: 09-30-2026

PRINCIPAL NAICS CODE: 621910 - Ambulance Services

PRODUCT/SERVICE CODE: V225 -

Transportation/Travel/Relocation - Travel/Lodging/Recruitment:
Ambulance.

1001AD

96.00 TRP

Dry Run (Cancellation with less than 30-minute advanced notification).

Estimated quantities.

Price per trip:

Contract Period: Option 1

POP Begin: 10-01-2025

POP End: 09-30-2026

PRINCIPAL NAICS CODE: 621910 - Ambulance Services

PRODUCT/SERVICE CODE: V225 -

Transportation/Travel/Relocation - Travel/Lodging/Recruitment:
Ambulance.

1001AE

180.00 TRP

Bariatric Transport (>300 lbs.).

Estimated quantities.

Price per trip:

Contract Period: Option 1

POP Begin: 10-01-2025

POP End: 09-30-2026

PRINCIPAL NAICS CODE: 621910 - Ambulance Services

PRODUCT/SERVICE CODE: V225 -

Transportation/Travel/Relocation - Travel/Lodging/Recruitment:
Ambulance.

1001AF

12.00 TRP

Incomplete Trip (Cancellation at door).

Estimated quantities.

Price per trip:

Contract Period: Option 1

POP Begin: 10-01-2025

POP End: 09-30-2026

PRINCIPAL NAICS CODE: 621910 - Ambulance Services

PRODUCT/SERVICE CODE: V225 -

Transportation/Travel/Relocation - Travel/Lodging/Recruitment:
Ambulance.

1001AG	1,200.00	TRP		
Mileage Trip Outside the Base Rate. Estimated quantities. Price per mile: \$7.50 Contract Period: Option 1 POP Begin: 10-01-2025 POP End: 09-30-2026 PRINCIPAL NAICS CODE: 621910 - Ambulance Services PRODUCT/SERVICE CODE: V225 - Transportation/Travel/Relocation - Travel/Lodging/Recruitment: Ambulance.				
1001AH	120.00	EA		
Wait Time (More than 30 minutes shall be paid in 30-minute increments). Estimated quantities. Price per 30 minutes: Contract Period: Option 1 POP Begin: 10-01-2025 POP End: 09-30-2026 PRINCIPAL NAICS CODE: 621910 - Ambulance Services PRODUCT/SERVICE CODE: V225 - Transportation/Travel/Relocation - Travel/Lodging/Recruitment: Ambulance.				
1001AJ	1.00	JB		
Emergency Services-Over and Above Repair of Unforeseen Requirements. Charges for repair, labor, and parts shall originate only when required and upon approval being granted by the Contracting Officer. Contract Period: Option 1 POP Begin: 10-01-2025 POP End: 09-30-2026 PRINCIPAL NAICS CODE: 621910 - Ambulance Services PRODUCT/SERVICE CODE: V225 - Transportation/Travel/Relocation - Travel/Lodging/Recruitment: Ambulance.				
2001	12.00	MO		
Contractor shall provide non-emergent Basic Life Support (BLS), Advanced Life Support (ALS), and Critical Care Transport (CCT) ambulance services on an as needed basis in accordance with all federal, state, and local regulations. Contract Period: Option 2 POP Begin: 10-01-2026 POP End: 09-30-2027 PRINCIPAL NAICS CODE: 621910 - Ambulance Services PRODUCT/SERVICE CODE: V225 - Transportation/Travel/Relocation - Travel/Lodging/Recruitment: Ambulance				
2001AA	540.00	TRP		
Basic Life Support, Non-Emergency Transport Services Provide transport to patients who do not require extra support or cardiac monitoring. staffed by two emergency medical technicians (EMTs) who have training in basic emergency medical care such as basic airway management, use of an automated external defibrillator				

and basic drug administration (base rate includes first 50 miles).
 One-way trip is equivalent to one each for the unit of issue.
 Estimated quantities.
 Estimated quantities.
 Price per one way trip:
 Contract Period: Option 2
 POP Begin: 10-01-2026
 POP End: 09-30-2027
 PRINCIPAL NAICS CODE: 621910 - Ambulance Services
 PRODUCT/SERVICE CODE: V225 -
 Transportation/Travel/Relocation - Travel/Lodging/Recruitment:
 Ambulance.

2001AB

180.00 TRP

(Advanced Life Support Emergency Transport, Level 1 (ALS 1)
 Advanced Life Support (ALS) ambulances transport patients who
 need a higher level of care during transport above those services
 provided by a BLS ambulance. The unit is staffed by at least one
 paramedic who has more than 1,000 hours of education and training
 and are qualified to render advanced life support to patients such as
 advanced airway management, drug administration and cardiac
 monitoring under the direction of a hospital (base rate to include first
 50 miles). One-way trip is equivalent to one each for the unit of issue.
 Estimated quantities.
 Price per one-way trip:
 Contract Period: Option 2
 POP Begin: 10-01-2026
 POP End: 09-30-2027
 PRINCIPAL NAICS CODE: 621910 - Ambulance Services
 PRODUCT/SERVICE CODE: V225 -
 Transportation/Travel/Relocation - Travel/Lodging/Recruitment:
 Ambulance.

2001AC

96.00 TRP

Critical Care Transport (Upper-Level Care) Specialty Care Transport
 (SCT) – As defined by the Centers for Medicare & Medicaid Services
 (CMS) — is interfacility transport of a critically injured or ill beneficiary
 by a ground ambulance vehicle including the provision of medically
 necessary supplies and services, at a level of service beyond the
 scope of the EMT-Paramedic SCT is necessary when a beneficiary's
 condition requires ongoing care that must be furnished by one or
 more health professionals in an appropriate specialty area, for care
 (base rate to include first 50 miles). One-way trip is equivalent to one
 each for the unit of issue.
 Estimated quantities.
 Price per one-way trip:
 Contract Period: Option 2
 POP Begin: 10-01-2026
 POP End: 09-30-2027
 PRINCIPAL NAICS CODE: 621910 - Ambulance Services
 PRODUCT/SERVICE CODE: V225 -
 Transportation/Travel/Relocation - Travel/Lodging/Recruitment:
 Ambulance.

2001AD	96.00	TRP		
Dry Run (Cancellation with less than 30-minute advanced notification). Estimated quantities. Price per trip: Contract Period: Option 2 POP Begin: 10-01-2026 POP End: 09-30-2027 PRINCIPAL NAICS CODE: 621910 - Ambulance Services PRODUCT/SERVICE CODE: V225 - Transportation/Travel/Relocation - Travel/Lodging/Recruitment: Ambulance.				
2001AE	15.00	TRP		
Bariatric Transport (>300 lbs.). Estimated quantities. Price per trip: Contract Period: Option 2 POP Begin: 10-01-2026 POP End: 09-30-2027 PRINCIPAL NAICS CODE: 621910 - Ambulance Services PRODUCT/SERVICE CODE: V225 - Transportation/Travel/Relocation - Travel/Lodging/Recruitment: Ambulance.				
2001AF	12.00	TRP		
Incomplete Trip (Cancellation at door). Estimated quantities. Price per trip: Contract Period: Option 2 POP Begin: 10-01-2026 POP End: 09-30-2027 PRINCIPAL NAICS CODE: 621910 - Ambulance Services PRODUCT/SERVICE CODE: V225 - Transportation/Travel/Relocation - Travel/Lodging/Recruitment: Ambulance.				
2001AG	1,200.00	MI		
Mileage Trip Outside the Base Rate. Estimated quantities. Price per mile: \$7.50 Contract Period: Option 2 POP Begin: 10-01-2026 POP End: 09-30-2027 PRINCIPAL NAICS CODE: 621910 - Ambulance Services PRODUCT/SERVICE CODE: V225 - Transportation/Travel/Relocation - Travel/Lodging/Recruitment: Ambulance.				
2001AH	120.00	EA		
Wait Time (More than 30 minutes shall be paid in 30-minute increments). Estimated quantities. Price per 30 minutes: Contract Period: Option 2 POP Begin: 10-01-2026 POP End: 09-30-2027				

PRINCIPAL NAICS CODE: 621910 - Ambulance Services PRODUCT/SERVICE CODE: V225 - Transportation/Travel/Relocation - Travel/Lodging/Recruitment: Ambulance.		
2001AJ	1.00 JB	_____
Emergency Services-Over and Above Repair of Unforeseen Requirements. Charges for repair, labor, and parts shall originate only when required and upon approval being granted by the Contracting Officer. Contract Period: Option 2 POP Begin: 10-01-2026 POP End: 09-30-2027 PRINCIPAL NAICS CODE: 621910 - Ambulance Services PRODUCT/SERVICE CODE: V225 - Transportation/Travel/Relocation - Travel/Lodging/Recruitment: Ambulance.		
3001	12.00 MO	_____
Contractor shall provide non-emergent Basic Life Support (BLS), Advanced Life Support (ALS), and Critical Care Transport (CCT) ambulance services on an as needed basis in accordance with all federal, state, and local regulations. Estimated quantities. Contract Period: Option 3 POP Begin: 10-01-2027 POP End: 09-30-2028 PRINCIPAL NAICS CODE: 621910 - Ambulance Services PRODUCT/SERVICE CODE: V225 - Transportation/Travel/Relocation - Travel/Lodging/Recruitment: Ambulance		
3001AA	540.00 TRP	_____
Basic Life Support, Non-Emergency Transport Services Provide transport to patients who do not require extra support or cardiac monitoring. staffed by two emergency medical technicians (EMTs) who have training in basic emergency medical care such as basic airway management, use of an automated external defibrillator and basic drug administration (base rate includes first 50 miles). One-way trip is equivalent to one each for the unit of issue. Estimated quantities. Estimated quantities. Price per one way trip: Contract Period: Option 3 POP Begin: 10-01-2027 POP End: 09-30-2028 PRINCIPAL NAICS CODE: 621910 - Ambulance Services PRODUCT/SERVICE CODE: V225 - Transportation/Travel/Relocation - Travel/Lodging/Recruitment: Ambulance.		
3001AB	180.00 TRP	_____
(Advanced Life Support Emergency Transport, Level 1 (ALS 1) Advanced Life Support (ALS) ambulances transport patients who need a higher level of care during transport above those services provided by a BLS ambulance. The unit is staffed by at least one paramedic who has more than 1,000 hours of education and training		

and are qualified to render advanced life support to patients such as advanced airway management, drug administration and cardiac monitoring under the direction of a hospital (base rate to include first 50 miles). One-way trip is equivalent to one each for the unit of issue. Estimated quantities.
 Price per one-way trip:
 Contract Period: Option 3
 POP Begin: 10-01-2027
 POP End: 09-30-2028
 PRINCIPAL NAICS CODE: 621910 - Ambulance Services
 PRODUCT/SERVICE CODE: V225 -
 Transportation/Travel/Relocation - Travel/Lodging/Recruitment:
 Ambulance.

3001AC	96.00	TRP		
Critical Care Transport (Upper-Level Care) Specialty Care Transport (SCT) – As defined by the Centers for Medicare & Medicaid Services (CMS) — is interfacility transport of a critically injured or ill beneficiary by a ground ambulance vehicle including the provision of medically necessary supplies and services, at a level of service beyond the scope of the EMT-Paramedic SCT is necessary when a beneficiary's condition requires ongoing care that must be furnished by one or more health professionals in an appropriate specialty area, for care (base rate to include first 50 miles). One-way trip is equivalent to one each for the unit of issue. Estimated quantities. Price per one-way trip: Contract Period: Option 3 POP Begin: 10-01-2027 POP End: 09-30-2028 PRINCIPAL NAICS CODE: 621910 - Ambulance Services PRODUCT/SERVICE CODE: V225 - Transportation/Travel/Relocation - Travel/Lodging/Recruitment: Ambulance.				
3001AD	96.00	TRP		
Dry Run (Cancellation with less than 30-minute advanced notification). Estimated quantities. Price per trip: Contract Period: Option 3 POP Begin: 10-01-2027 POP End: 09-30-2028 PRINCIPAL NAICS CODE: 621910 - Ambulance Services PRODUCT/SERVICE CODE: V225 - Transportation/Travel/Relocation - Travel/Lodging/Recruitment: Ambulance.				
3001AE	180.00	TRP		
Bariatric Transport (>300 lbs.). Estimated quantities. Price per trip: Contract Period: Option 3 POP Begin: 10-01-2027 POP End: 09-30-2028 PRINCIPAL NAICS CODE: 621910 - Ambulance Services				

PRODUCT/SERVICE CODE: V225 - Transportation/Travel/Relocation - Travel/Lodging/Recruitment: Ambulance.			
3001AF	12.00	TRP	
Incomplete Trip (Cancellation at door). Estimated quantities. Price per trip: Contract Period: Option 3 POP Begin: 10-01-2027 POP End: 09-30-2028 PRINCIPAL NAICS CODE: 621910 - Ambulance Services PRODUCT/SERVICE CODE: V225 - Transportation/Travel/Relocation - Travel/Lodging/Recruitment: Ambulance.			
3001AG	1,200.00	MI	
Mileage Trip Outside the Base Rate. Estimated quantities. Price per mile: \$7.50 Contract Period: Option 3 POP Begin: 10-01-2027 POP End: 09-30-2028 PRINCIPAL NAICS CODE: 621910 - Ambulance Services PRODUCT/SERVICE CODE: V225 - Transportation/Travel/Relocation - Travel/Lodging/Recruitment: Ambulance.			
3001AH	120.00	EA	
Wait Time (More than 30 minutes shall be paid in 30-minute increments). Estimated quantities. Price per 30 minutes: Contract Period: Option 3 POP Begin: 10-01-2027 POP End: 09-30-2028 PRINCIPAL NAICS CODE: 621910 - Ambulance Services PRODUCT/SERVICE CODE: V225 - Transportation/Travel/Relocation - Travel/Lodging/Recruitment: Ambulance.			
3001AJ	1.00	JB	
Emergency Services-Over and Above Repair of Unforeseen Requirements. Charges for repair, labor, and parts shall originate only when required and upon approval being granted by the Contracting Officer. Contract Period: Option 3 POP Begin: 10-01-2027 POP End: 09-30-2028 PRINCIPAL NAICS CODE: 621910 - Ambulance Services PRODUCT/SERVICE CODE: V225 - Transportation/Travel/Relocation - Travel/Lodging/Recruitment: Ambulance.			
4001	12.00	MO	
Contractor shall provide non-emergent Basic Life Support (BLS), Advanced Life Support (ALS), and Critical Care Transport (CCT) ambulance services on an as needed basis in accordance with all			

	federal, state, and local regulations. Estimated quantities. Contract Period: Option 3 POP Begin: 10-01-2028 POP End: 09-30-2029 PRINCIPAL NAICS CODE: 621910 - Ambulance Services PRODUCT/SERVICE CODE: V225 - Transportation/Travel/Relocation - Travel/Lodging/Recruitment: Ambulance		
4001AA	540.00 TRP Basic Life Support, Non-Emergency Transport Services Provide transport to patients who do not require extra support or cardiac monitoring. staffed by two emergency medical technicians (EMTs) who have training in basic emergency medical care such as basic airway management, use of an automated external defibrillator and basic drug administration (Base rate includes first 50 miles). One-way trip is equivalent to one each for the unit of issue. Estimated quantities. Estimated quantities. Price per one way trip: Contract Period: Option 3 POP Begin: 10-01-2028 POP End: 09-30-2029 PRINCIPAL NAICS CODE: 621910 - Ambulance Services PRODUCT/SERVICE CODE: V225 - Transportation/Travel/Relocation - Travel/Lodging/Recruitment: Ambulance.		
4001AB	180.00 TRP (Advanced Life Support Emergency Transport, Level 1 (ALS 1) Advanced Life Support (ALS) ambulances transport patients who need a higher level of care during transport above those services provided by a BLS ambulance. The unit is staffed by at least one paramedic who has more than 1,000 hours of education and training and are qualified to render advanced life support to patients such as advanced airway management, drug administration and cardiac monitoring under the direction of a hospital. (base rate to include first 50 miles). One-way trip is equivalent to one each for the unit of issue. Estimated quantities. Price per one-way trip: Contract Period: Option 3 POP Begin: 10-01-2028 POP End: 09-30-2029 PRINCIPAL NAICS CODE: 621910 - Ambulance Services PRODUCT/SERVICE CODE: V225 - Transportation/Travel/Relocation - Travel/Lodging/Recruitment: Ambulance.		
4001AC	96.00 TRP Critical Care Transport (Upper-Level Care) Specialty Care Transport (SCT) – As defined by the Centers for Medicare & Medicaid Services (CMS) — is interfacility transport of a critically injured or ill beneficiary by a ground ambulance vehicle including the provision of medically necessary supplies and services, at a level of service beyond the scope of the EMT-Paramedic SCT is necessary when a beneficiary's		

	condition requires ongoing care that must be furnished by one or more health professionals in an appropriate specialty area, for care (base rate to include first 50 miles). One-way trip is equivalent to one each for the unit of issue. Estimated quantities. Price per one-way trip: Contract Period: Option 3 POP Begin: 10-01-2028 POP End: 09-30-2029 PRINCIPAL NAICS CODE: 621910 - Ambulance Services PRODUCT/SERVICE CODE: V225 - Transportation/Travel/Relocation - Travel/Lodging/Recruitment: Ambulance.		
4001AD	96.00	TRP	_____
	Dry Run (Cancellation with less than 30-minute advanced notification). Estimated quantities. Price per trip: Contract Period: Option 3 POP Begin: 10-01-2028 POP End: 09-30-2029 PRINCIPAL NAICS CODE: 621910 - Ambulance Services PRODUCT/SERVICE CODE: V225 - Transportation/Travel/Relocation - Travel/Lodging/Recruitment: Ambulance.		
4001AE	180.00	TRP	_____
	Bariatric Transport (>300 lbs.). Estimated quantities. Price per trip: Contract Period: Option 3 POP Begin: 10-01-2028 POP End: 09-30-2029 PRINCIPAL NAICS CODE: 621910 - Ambulance Services PRODUCT/SERVICE CODE: V225 - Transportation/Travel/Relocation - Travel/Lodging/Recruitment: Ambulance.		
4001AF	12.00	TRP	_____
	Incomplete Trip (Cancellation at door). Estimated quantities. Price per trip: Contract Period: Option 3 POP Begin: 10-01-2028 POP End: 09-30-2029 PRINCIPAL NAICS CODE: 621910 - Ambulance Services PRODUCT/SERVICE CODE: V225 - Transportation/Travel/Relocation - Travel/Lodging/Recruitment: Ambulance.		
4001AG	1,200.00	MI	_____
	Mileage Trip Outside the Base Rate. Estimated quantities. Price per mile: \$7.50 Contract Period: Option 3 POP Begin: 10-01-2028		

POP End: 09-30-2029 PRINCIPAL NAICS CODE: 621910 - Ambulance Services PRODUCT/SERVICE CODE: V225 - Transportation/Travel/Relocation - Travel/Lodging/Recruitment: Ambulance.			
4001AH	120.00	EA	
Wait Time (More than 30 minutes shall be paid in 30-minute increments). Estimated quantities. Price per 30 minutes: Contract Period: Option 3 POP Begin: 10-01-2028 POP End: 09-30-2029 PRINCIPAL NAICS CODE: 621910 - Ambulance Services PRODUCT/SERVICE CODE: V225 - Transportation/Travel/Relocation - Travel/Lodging/Recruitment: Ambulance.			
4001AJ	1.00	JB	
Emergency Services-Over and Above Repair of Unforeseen Requirements. Charges for repair, labor, and parts shall originate only when required and upon approval being granted by the Contracting Officer. Contract Period: Option 3 POP Begin: 10-01-2028 POP End: 09-30-2029 PRINCIPAL NAICS CODE: 621910 - Ambulance Services PRODUCT/SERVICE CODE: V225 - Transportation/Travel/Relocation - Travel/Lodging/Recruitment: Ambulance.			
GRAND TOTAL			

B.3 DELIVERY SCHEDULE

ITEM NUMBER	SHIPPING INFORMATION	QUANTITY	DELIVERY DATE
0001 to 4001	SHIP TO: VA Loma Linda Heath Care System 11201 Benton Street Loma Linda, CA 92357 USA MARK FOR: Oscar Cruz (909) 307-5251 oscar.cruz17@va.gov FOB: DESTINATION	ALL	05-01-2025 to 09-30-2029

SECTION C - CONTRACT CLAUSES

C.1 ADDENDUM to FAR 52.212-4 CONTRACT TERMS AND CONDITIONS— COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

Clauses that are incorporated by reference (by Citation Number, Title, and Date), have the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available.

The following clauses are incorporated into 52.212-4 as an addendum to this contract:

C.2 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>
<https://www.va.gov/oal/library/vaar/>

(End of Clause)

<u>FAR Number</u>	<u>Title</u>	<u>Date</u>
52.203-16	PREVENTING PERSONAL CONFLICTS OF INTEREST	JUN 2020
52.204-9	PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL	JAN 2011
52.204-13	SYSTEM FOR AWARD MANAGEMENT MAINTENANCE	OCT 2018
52.204-18	COMMERCIAL AND GOVERNMENT ENTITY CODE MAINTENANCE	AUG 2020
52.223-2	REPORTING OF BIOBASED PRODUCTS UNDER SERVICE AND CONSTRUCTION CONTRACTS	MAY 2024
52.223-5	POLLUTION PREVENTION AND RIGHT-TO-KNOW INFORMATION	MAY 2024
52.223-10	WASTE REDUCTION PROGRAM	MAY 2024
52.223-23	SUSTAINABLE PRODUCTS AND SERVICES	MAY 2024
52.227-14	RIGHTS IN DATA—GENERAL	MAY 2014
52.228-5	INSURANCE—WORK ON A GOVERNMENT INSTALLATION	JAN 1997
52.237-2	PROTECTION OF GOVERNMENT BUILDINGS, EQUIPMENT, AND VEGETATION	APR 1984
852.204-70	PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL	MAY 2020

C.3 52.216-18 ORDERING (AUG 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from April 1, 2025 through September 30, 2029.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when—

- (1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;
- (2) If sent by fax, the Government transmits the order to the Contractor's fax number; or
- (3) If sent electronically, the Government either—
 - (i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or
 - (ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of Clause)

C.4 52.216-19 ORDER LIMITATIONS (OCT 1995)

(a) *Minimum order.* When the Government requires supplies or services covered by this contract in an amount of less than \$10,000.00, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order.* The Contractor is not obligated to honor—

- (1) Any order for a single item in excess of \$2,214,000.00;
- (2) Any order for a combination of items in excess of \$4,782,701.00; or
- (3) A series of orders from the same ordering office within 10 days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (i.e., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 5 days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of Clause)

C.5 52.216-22 INDEFINITE QUANTITY (OCT 1995)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; *provided*, that the Contractor shall not be required to make any deliveries under this contract after 09-30-2029.

(End of Clause)

C.6 52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 30 days.

(End of Clause)

C.7 52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 30 days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed five (5) years.

(End of Clause)

C.8 SUPPLEMENTAL INSURANCE REQUIREMENTS

In accordance with FAR 28.307-2 and FAR 52.228-5, the following minimum coverage shall apply to this contract:

(a) Workers' compensation and employers liability: Contractors are required to comply with applicable Federal and State workers' compensation and occupational disease statutes. If occupational diseases are not compensable under those statutes, they shall be covered under the employer's liability section of the insurance policy, except when contract operations are so commingled with a Contractor's commercial operations that it would not be practical to require this coverage. Employer's liability coverage of at least \$100,000 is required, except in States with exclusive or monopolistic funds that do not permit workers' compensation to be written by private carriers.

(b) General Liability: \$500,000.00 per occurrences.

(c) Automobile liability: \$200,000.00 per person; \$500,000.00 per occurrence and \$20,000.00 property damage.

(d) The successful bidder must present to the Contracting Officer, prior to award, evidence of general liability insurance without any exclusionary clauses for asbestos that would void the general liability coverage.

(End of Clause)

C.9 52.232-19 AVAILABILITY OF FUNDS FOR THE NEXT FISCAL YEAR (APR 1984)

Funds are not presently available for performance under this contract beyond September 30, 2025. The Government's obligation for performance of this contract beyond that date is contingent upon the availability of appropriated funds from which payment for contract purposes can be made. No legal liability on the part of the Government for any payment may arise for performance under this contract beyond September 30, 2025, until funds are made available to the Contracting Officer for performance and until the Contractor receives notice of availability, to be confirmed in writing by the Contracting Officer.

(End of Clause)

C.10 52.237-3 CONTINUITY OF SERVICES (JAN 1991)

(a) The Contractor recognizes that the services under this contract are vital to the Government and must be continued without interruption and that, upon contract expiration, a successor, either the Government or another contractor, may continue them. The Contractor agrees to (1) furnish phase-in training and (2) exercise its best efforts and cooperation to effect an orderly and efficient transition to a successor.

(b) The Contractor shall, upon the Contracting Officer's written notice, (1) furnish phase-in, phase-out services for up to 90 days after this contract expires and (2) negotiate in good faith a plan with a successor to determine the nature and extent of phase-in, phase-out services required. The plan shall specify a training program and a date for transferring responsibilities for each division of work described in the plan and shall be subject to the Contracting Officer's

approval. The Contractor shall provide sufficient experienced personnel during the phase-in, phase-out period to ensure that the services called for by this contract are maintained at the required level of proficiency.

(c) The Contractor shall allow as many personnel as practicable to remain on the job to help the successor maintain the continuity and consistency of the services required by this contract. The Contractor also shall disclose necessary personnel records and allow the successor to conduct on-site interviews with these employees. If selected employees are agreeable to the change, the Contractor shall release them at a mutually agreeable date and negotiate transfer of their earned fringe benefits to the successor.

(d) The Contractor shall be reimbursed for all reasonable phase-in, phase-out costs (i.e., costs incurred within the agreed period after contract expiration that result from phase-in, phase-out operations) and a fee (profit) not to exceed a pro rata portion of the fee (profit) under this contract.

(End of Clause)

C.11 VAAR 852.201-70 CONTRACTING OFFICER'S REPRESENTATIVE (DEC 2022)

The Contracting Officer reserves the right to designate representatives to act for him/her in furnishing technical guidance and advice or generally monitor the work to be performed under this contract. Such designation will be in writing and will define the scope and limitation of the designee's authority. A copy of the designation letter shall be furnished to the Contractor.

(End of Clause)

C.12 VAAR 852.203-70 COMMERCIAL ADVERTISING (MAY 2018)

The Contractor shall not make reference in its commercial advertising to Department of Veterans Affairs contracts in a manner that states or implies the Department of Veterans Affairs approves or endorses the Contractor's products or services or considers the Contractor's products or services superior to other products or services.

(End of Clause)

C.13 VAAR 852.211-76 LIQUIDATED DAMAGES – REIMBURSEMENT FOR DATA BREACH COSTS (FEB 2023) ALTERNATE I (FEB 2023)

(a) *Definition.* As used in this clause, "contract" means any contract, agreement, order or other instrument and encompasses the definition set forth in FAR 2.101.

(b) *Non-disclosure requirements.* As a condition of performance under a contract, order, agreement, or other instrument that requires access to sensitive personal information as defined in VAAR 802.101, the following is expressly required—

(1) The Contractor, subcontractor, their employees or business associates shall not, directly or through an affiliate or employee of the Contractor, subcontractor, or business associate, disclose sensitive personal information to any other person unless the disclosure is lawful and is expressly permitted under the contract; and

(2) The Contractor, subcontractor, their employees or business associates shall immediately notify the Contracting Officer and the Contracting Officer's Representative (COR) of any security incident that occurs involving sensitive personal information.

(c) *Liquidated damages.* If the Contractor or any of its agents fails to protect VA sensitive personal information or otherwise engages in conduct which results in a data breach, the Contractor shall, in place of actual damages, pay to the Government liquidated damages of [\$37.50] per affected individual in order to cover costs related to the notification, data breach analysis and credit monitoring. In the event the Contractor provides payment of actual damages in an amount determined to be adequate by the Contracting Officer, the Contracting Officer may forgo collection of liquidated damages.

(d) *Purpose of liquidated damages.* Based on the results from VA's determination that there was a data breach caused by Contractor's or any of its agents' failure to protect or otherwise engaging in conduct to cause a data breach of VA sensitive personal information, and as directed by the Contracting Officer, the Contractor shall be responsible for paying to the VA liquidated damages in the amount of [\$37.50] per affected individual to cover the cost of the following:

- (1) Notification related costs.
- (2) Credit monitoring reports.
- (3) Data breach analysis and impact.
- (4) Fraud alerts.
- (5) Identity theft insurance.

(e) *Relationship to termination clause, if applicable.* If the Government terminates this contract in whole or in part under the Termination for cause paragraph, FAR 52.212-4(m), Contract Terms and Conditions—Commercial Products and Commercial Services, the Contractor is liable for damages accruing until the Government reasonably obtains delivery or performance of similar supplies or services. These damages are in addition to costs of repurchase as may be required under the Termination clause.

(End of Clause)

C.14 VAAR 852.219-75 VA NOTICE OF LIMITATIONS ON SUBCONTRACTING—CERTIFICATE OF COMPLIANCE FOR SERVICES AND CONSTRUCTION (JAN 2023) (DEVIATION)

(a) Pursuant to 38 U.S.C. 8127(l)(2), the offeror certifies that—

(1) If awarded a contract (see FAR 2.101 definition), it will comply with the limitations on subcontracting requirement as provided in the solicitation and the resultant contract, as follows:

(i) ☐ *Services.* In the case of a contract for services (except construction), the contractor will not pay more than 50% of the amount paid by the government to it to firms that are not certified SDVOSBs listed in the SBA certification database as set forth in 852.219-73 or certified VOSBs

listed in the SBA certification database as set forth in 852.219–74. Any work that a similarly situated certified SDVOSB/VOSB subcontractor further subcontracts will count towards the 50% subcontract amount that cannot be exceeded. Other direct costs may be excluded to the extent they are not the principal purpose of the acquisition and small business concerns do not provide the service as set forth in 13 CFR 125.6.

(ii) *General construction.* In the case of a contract for general construction, the contractor will not pay more than 85% of the amount paid by the government to it to firms that are not certified SDVOSBs listed in the SBA certification database as set forth in 852.219–73 or certified VOSBs listed in the SBA certification database as set forth in 852.219–74. Any work that a similarly situated certified SDVOSB/VOSB subcontractor further subcontracts will count towards the 85% subcontract amount that cannot be exceeded. Cost of materials are excluded and not considered to be subcontracted.

(iii) *Special trade construction contractors.* In the case of a contract for special trade contractors, the contractor will not pay more than 75% of the amount paid by the government to it to firms that are not certified SDVOSBs listed in the SBA certification database as set forth in 852.219–73 or certified VOSBs listed in the SBA certification database as set forth in 852.219–74. Any work that a similarly situated certified SDVOSB/VOSB subcontractor further subcontracts will count towards the 75% subcontract amount that cannot be exceeded. Cost of materials are excluded and not considered to be subcontracted.

(2) The offeror acknowledges that this certification concerns a matter within the jurisdiction of an Agency of the United States. The offeror further acknowledges that this certification is subject to Title 18, United States Code, Section 1001, and, as such, a false, fictitious, or fraudulent certification may render the offeror subject to criminal, civil, or administrative penalties, including prosecution.

(3) If VA determines that an SDVOSB/ VOSB awarded a contract pursuant to 38 U.S.C. 8127 did not act in good faith, such SDVOSB/VOSB shall be subject to any or all of the following:

- (i) Referral to the VA Suspension and Debarment Committee;
- (ii) A fine under section 16(g)(1) of the Small Business Act (15 U.S.C. 645(g)(1)); and
- (iii) Prosecution for violating 18 U.S.C. 1001.

(b) The offeror represents and understands that by submission of its offer and award of a contract it may be required to provide copies of documents or records to VA that VA may review to determine whether the offeror complied with the limitations on subcontracting requirement specified in the contract. Contracting officers may, at their discretion, require the contractor to demonstrate its compliance with the limitations on subcontracting at any time during performance and upon completion of a contract if the information regarding such compliance is not already available to the contracting officer. Evidence of compliance includes, but is not limited to, invoices, copies of subcontracts, or a list of the value of tasks performed.

(c) The offeror further agrees to cooperate fully and make available any documents or records as may be required to enable VA to determine compliance with the limitations on subcontracting

requirement. The offeror understands that failure to provide documents as requested by VA may result in remedial action as the Government deems appropriate.

(d) Offeror completed certification/fill-in required. The formal certification must be completed, signed and returned with the offeror's bid, quotation, or proposal. The Government will not consider offers for award from offerors that do not provide the certification, and all such responses will be deemed ineligible for evaluation and award.

Certification

I hereby certify that if awarded the contract, [insert name of offeror] will comply with the limitations on subcontracting specified in this clause and in the resultant contract. I further certify that I am authorized to execute this certification on behalf of [insert name of offeror].

Printed Name of Signee: _____

Printed Title of Signee: _____

Signature: _____

Date: _____

Company Name and Address: _____

(End of Clause)

C.15 VAAR 852.228-71 INDEMNIFICATION AND INSURANCE (MAR 2018)

(a) *Indemnification.* The Contractor expressly agrees to indemnify and save the Government, its officers, agents, servants, and employees harmless from and against any and all claims, loss, damage, injury, and liability, however caused, resulting from, arising out of, or in any way connected with the performance of work under this contract. Further, it is agreed that any negligence or alleged negligence of the Government, its officers, agents, servants, and employees, shall not be a bar to a claim for indemnification unless the act or omission of the Government, its officers, agents, servants, and employees is the sole, competent, and producing cause of such claims, loss, damage, injury, and liability. At the option of the Contractor, and subject to the approval by the Contracting Officer, insurance coverage may be employed as guaranty of indemnification.

(b) *Insurance.* Satisfactory insurance coverage is a condition precedent to award of this contract. In general, a successful bidder must present satisfactory evidence of full compliance with State and local requirements, or those below stipulated, whichever are the greater. More specifically, workers' compensation and employer's liability coverage will conform to applicable State law requirements for the service defined, whereas general liability and automobile liability of comprehensive type shall, in the absence of higher statutory minimums, be required in the amounts per vehicle used of not less than \$200,000 per person and \$500,000 per occurrence for bodily injury and \$20,000 per occurrence for property damage. State-approved sources of insurance coverage ordinarily will be deemed acceptable to the Department of Veterans Affairs, subject to timely certifications by such sources of the types and limits of the coverages afforded by the sources to the bidder.

(End of Clause)

C.16 VAAR 852.232-72 ELECTRONIC SUBMISSION OF PAYMENT REQUESTS (NOV 2018)

(a) *Definitions.* As used in this clause—

(1) *Contract financing payment* has the meaning given in FAR 32.001;

(2) *Designated agency office* means the office designated by the purchase order, agreement, or contract to first receive and review invoices. This office can be contractually designated as the receiving entity. This office may be different from the office issuing the payment;

(3) *Electronic form* means an automated system transmitting information electronically according to the accepted electronic data transmission methods and formats identified in paragraph (c) of this clause. Facsimile, email, and scanned documents are not acceptable electronic forms for submission of payment requests;

(4) *Invoice payment* has the meaning given in FAR 32.001; and

(5) *Payment request* means any request for contract financing payment or invoice payment submitted by the contractor under this contract.

(b) *Electronic payment requests.* Except as provided in paragraph (e) of this clause, the contractor shall submit payment requests in electronic form. Purchases paid with a Government-wide commercial purchase card are considered to be an electronic transaction for purposes of this rule, and therefore no additional electronic invoice submission is required.

(c) *Data transmission.* A contractor must ensure that the data transmission method and format are through one of the following:

(1) VA's Electronic Invoice Presentment and Payment System at the current website address provided in the contract.

(2) Any system that conforms to the X12 electronic data interchange (EDI) formats established by the Accredited Standards Center (ASC) and chartered by the American National Standards Institute (ANSI).

(d) *Invoice requirements.* Invoices shall comply with FAR 32.905.

(e) *Exceptions.* If, based on one of the circumstances in this paragraph (e), the Contracting Officer directs that payment requests be made by mail, the Contractor shall submit payment requests by mail through the United States Postal Service to the designated agency office. Submission of payment requests by mail may be required for—

(1) Awards made to foreign vendors for work performed outside the United States;

(2) Classified contracts or purchases when electronic submission and processing of payment requests could compromise the safeguarding of classified or privacy information;

(3) Contracts awarded by contracting officers in the conduct of emergency operations, such as responses to national emergencies;

(4) Solicitations or contracts in which the designated agency office is a VA entity other than the VA Financial Services Center in Austin, Texas; or

(5) Solicitations or contracts in which the VA designated agency office does not have electronic invoicing capability as described above.

(End of Clause)

C.17 VAAR 852.237-74 NON-DISCRIMINATION IN SERVICE DELIVERY (OCT 2019)

It is the policy of the Department of Veterans Affairs that no person otherwise eligible will be excluded from participation in, denied the benefits of, or subjected to discrimination in the administration of VA programs and services based on non-merit factors such as race, color, national origin, religion, sex, gender identity, sexual orientation, or disability (physical or mental). By acceptance of this contract, the Contractor agrees to comply with this policy in supporting the program and in performing the services called for under this contract. The Contractor shall include this clause in all subcontracts awarded under this contract for supporting or performing the specified program and services. Accordingly, the Contractor shall ensure that each of its employees, and any subcontractor staff, is made aware of, understands, and complies with this policy.

(End of Clause)

C.18 VAAR 852.237-75 KEY PERSONNEL (OCT 2019)

The key personnel specified in this contract are considered to be essential to work performance. At least 30 days prior to the Contractor voluntarily diverting any of the specified individuals to other programs or contracts the Contractor shall notify the Contracting Officer and shall submit a justification for the diversion or replacement and a request to replace the individual. The request must identify the proposed replacement and provide an explanation of how the replacement's skills, experience, and credentials meet or exceed the requirements of the contract. If the employee of the Contractor is terminated for cause or separates from the contractor voluntarily with less than thirty days notice, the Contractor shall provide the maximum notice practicable under the circumstances. The Contractor shall not divert, replace, or announce any such change to key personnel without the written consent of the Contracting Officer. The contract will be modified to add or delete key personnel as necessary to reflect the agreement of the parties.

(End of Clause)

(End of Addendum to 52.212-4)

C.19 52.212-5 CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (MAY 2024)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204–23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115–91).

(3) 52.204–25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115–232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (NOV 2015).

(5) 52.232–40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (AUG 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[X] (1) 52.203–6, Restrictions on Subcontractor Sales to the Government (JUN 2020), with Alternate I (NOV 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

[X] (2) 52.203–13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

[] (3) 52.203–15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (JUN 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

[X] (4) 52.203–17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community—see FAR 3.900(a).

[X] (5) 52.204–10, Reporting Executive Compensation and First-Tier Subcontract Awards (JUN 2020) (Pub. L. 109–282) (31 U.S.C. 6101 note).

☐ (6) [Reserved]

☐ (7) 52.204–14, Service Contract Reporting Requirements (OCT 2016) (Pub. L. 111–117, section 743 of Div. C).

☒ (8) 52.204–15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (OCT 2016) (Pub. L. 111–117, section 743 of Div. C).

☒ (9) 52.204–27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117–328).

☐ (10) 52.204–28, Federal Acquisition Supply Chain Security Act Orders—Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (DEC 2023) (Pub. L. 115–390, title II).

☐ (11)(i) 52.204–30, Federal Acquisition Supply Chain Security Act Orders— Prohibition. (DEC 2023) (Pub. L. 115–390, title II).

☐ (ii) Alternate I (DEC 2023) of 52.204–30.

☒ (12) 52.209–6, Protecting the Government’s Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment. (NOV 2021) (31 U.S.C. 6101 note).

☒ (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (OCT 2018) (41 U.S.C. 2313).

☐ (14) [Reserved]

☐ (15) 52.219–3, Notice of HUBZone Set-Aside or Sole-Source Award (OCT 2022) (15 U.S.C. 657a).

☐ (16) 52.219–4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (OCT 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

☐ (17) [Reserved]

☐ (18)(i) 52.219-6, Notice of Total Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

☐ (ii) Alternate I (MAR 2020) of 52.219-6.

☐ (19)(i) 52.219-7, Notice of Partial Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

☐ (ii) Alternate I (MAR 2020) of 52.219-7.

☒ (20) 52.219-8, Utilization of Small Business Concerns (FEB 2024) (15 U.S.C. 637(d)(2) and (3)).

☐ (21)(i) 52.219–9, Small Business Subcontracting Plan (SEP 2023) (15 U.S.C. 637(d)(4)).

☐ (ii) Alternate I (NOV 2016) of 52.219-9.

- ☐ (iii) Alternate II (NOV 2016) of 52.219-9.
- ☐ (iv) Alternate III (JUN 2020) of 52.219-9.
- ☐ (v) Alternate IV (SEP 2023) of 52.219-9.
- ☐ (22)(i) 52.219-13, Notice of Set-Aside of Orders (MAR 2020) (15 U.S.C. 644(r)).
- ☐ (ii) Alternate I (MAR 2020) of 52.219-13.
- ☒ (23) 52.219-14, Limitations on Subcontracting (OCT 2022) (15 U.S.C. 657s).
- ☐ (24) 52.219-16, Liquidated Damages—Subcontracting Plan (SEP 2021) (15 U.S.C. 637(d)(4)(F)(i)).
- ☒ (25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (FEB 2024) (15 U.S.C. 657f).
- ☒ (26) (i) 52.219-28, Post-Award Small Business Program Representation (FEB 2024) (15 U.S.C. 632(a)(2)).
- ☐ (ii) Alternate I (MAR 2020) of 52.219-28.
- ☐ (27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (OCT 2022) (15 U.S.C. 637(m)).
- ☐ (28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (OCT 2022) (15 U.S.C. 637(m)).
- ☐ (29) 52.219-32, Orders Issued Directly Under Small Business Reserves (MAR 2020) (15 U.S.C. 644(r)).
- ☐ (30) 52.219-33, Nonmanufacturer Rule (SEP 2021) (15 U.S.C. 657s).
- ☒ (31) 52.222-3, Convict Labor (JUN 2003) (E.O. 11755).
- ☐ (32) 52.222-19, Child Labor—Cooperation with Authorities and Remedies (FEB 2024) (E.O. 13126).
- ☒ (33) 52.222-21, Prohibition of Segregated Facilities (APR 2015).
- ☒ (34)(i) 52.222-26, Equal Opportunity (SEP 2016) (E.O. 11246).
- ☐ (ii) Alternate I (FEB 1999) of 52.222-26.
- ☒ (35)(i) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).
- ☐ (ii) Alternate I (JUL 2014) of 52.222-35.
- ☒ (36)(i) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

☐ (ii) Alternate I (JUL 2014) of 52.222-36.

☒ (37) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

☒ (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496).

☒ (39)(i) 52.222-50, Combating Trafficking in Persons (NOV 2021) (22 U.S.C. chapter 78 and E.O. 13627).

☐ (ii) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

☒ (40) 52.222-54, Employment Eligibility Verification (MAY 2022). (E. O. 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)

☐ (41)(i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA-Designated Items (MAY 2008) (42 U.S.C.6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

☐ (ii) Alternate I (MAY 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

☐ (42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (MAY 2024) (42 U.S.C. 7671, *et seq.*).

☐ (43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (MAY 2024) (42 U.S.C. 7671, *et seq.*).

☐ (44) 52.223-20, Aerosols. (MAY 2024) (42 U.S.C. 7671, *et seq.*).

☐ (45) 52.223-21, Foams (MAY 2024). (42 U.S.C. 7671, *et seq.*).

☒ (46) 52.223-23, Sustainable Products and Services (MAY 2024) (E.O. 14057, 7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671I).

☐ (47)(i) 52.224-3, Privacy Training (JAN 2017) (5 U.S.C. 552a).

☐ (ii) Alternate I (JAN 2017) of 52.224-3.

☐ (48)(i) 52.225-1, Buy American—Supplies (OCT 2022) (41 U.S.C. chapter 83).

☐ (ii) Alternate I (OCT 2022) of 52.225-1.

☐ (49)(i) 52.225-3, Buy American—Free Trade Agreements—Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43).

☐ (ii) Alternate I [Reserved].

☐ (iii) Alternate II (DEC 2022) of 52.225-3.

☐ (iv) Alternate III (FEB 2024) of 52.225-3.

☐ (v) Alternate IV (OCT 2022) of 52.225-3.

☐ (50) 52.225-5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, *et seq.*, 19 U.S.C. 3301 note

☒ (51) 52.225-13, Restrictions on Certain Foreign Purchases (FEB 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

☐ (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

☐ (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (NOV 2007) (42 U.S.C. 5150).

☐ (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (NOV 2007) (42 U.S.C. 5150).

☒ (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (MAY 2024) (E.O. 13513)

☐ (56) 52.229-12, Tax on Certain Foreign Procurements (FEB 2021).

☐ (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

☐ (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

☒ (59) 52.232-33, Payment by Electronic Funds Transfer—System for Award Management (OCT 2018) (31 U.S.C. 3332).

☐ (60) 52.232-34, Payment by Electronic Funds Transfer—Other than System for Award Management (JUL 2013) (31 U.S.C. 3332).

☐ (61) 52.232-36, Payment by Third Party (MAY 2014) (31 U.S.C. 3332).

☐ (62) 52.239-1, Privacy or Security Safeguards (AUG 1996) (5 U.S.C. 552a).

☐ (63) 52.242-5, Payments to Small Business Subcontractors (JAN 2017)(15 U.S.C. 637(d)(13)).

☐ (64)(i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).

☐ (ii) Alternate I (APR 2003) of 52.247-64.

☐ (iii) Alternate II (NOV 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[X] (1) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).

[X] (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (MAY 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

Employee Class	Monetary Wage-Fringe Benefits
12010/Ambulance Driver	GS-5/\$22.79
12010/Ambulance Driver Supervisor	GS-5/\$23.52
12040/EMT	GS-5/\$22.79
12040/EMT Supervisor	GS-5/\$23.52
01070/Dispatcher, Motor Vehicle	GS-5/\$22.79
01070/Dispatcher, Motor Vehicle Supervisor	GS-5/\$23.52

[X] (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards—Price Adjustment (Multiple Year and Option Contracts) (AUG 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

☐ (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards—Price Adjustment (MAY 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

☐ (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment—Requirements (MAY 2014) (41 U.S.C. chapter 67).

☐ (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services—Requirements (MAY 2014) (41 U.S.C. chapter 67).

[X] (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).

[X] (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

☐ (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792).

(d) Comptroller General Examination of Record. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records—Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final

payment under this contract or for any shorter period specified in FAR Subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1) in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause—

(i) 52.203–13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

(ii) 52.203–17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712).

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.204–23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115–91).

(v) 52.204–25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115–232).

(vi) 52.204–27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117–328).

(vii) (A) 52.204–30, Federal Acquisition Supply Chain Security Act Orders— Prohibition. (DEC 2023) (Pub. L. 115–390, title II).

(B) Alternate I (DEC 2023) of 52.204–30.

(viii) 52.219–8, Utilization of Small Business Concerns (FEB 2024) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219–8 in lower tier subcontracts that offer subcontracting opportunities.

(ix) 52.222-21, Prohibition of Segregated Facilities (APR 2015).

(x) 52.222–26, Equal Opportunity (SEP 2016) (E.O. 11246).

- (xi) 52.222–35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).
- (xii) 52.222–36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).
- (xiii) 52.222–37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).
- (xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.
- (xv) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).
- (xvi)(A) 52.222-50, Combating Trafficking in Persons (NOV 2021) (22 U.S.C. chapter 78 and E.O. 13627).
- (B) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).
- (xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment—Requirements (MAY 2014) (41 U.S.C. chapter 67).
- (xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services—Requirements (MAY 2014) (41 U.S.C. chapter 67).
- (xix) 52.222-54, Employment Eligibility Verification (MAY 2022) (E. O. 12989).
- (xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).
- (xxi) 52.222-62 Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).
- (xxii)(A) 52.224-3, Privacy Training (JAN 2017) (5 U.S.C. 552a).
- (B) Alternate I (JAN 2017) of 52.224-3.
- (xxiii) 52.225–26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
- (xxiv) 52.226–6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.
- (xxv) 52.232–40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232–40.
- (xxvi) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of Clause)

C.20 MANDATORY WRITTEN DISCLOSURES

Mandatory written disclosures required by FAR clause 52.203-13 to the Department of Veterans Affairs, Office of Inspector General (OIG) must be made electronically through the VA OIG Hotline at <http://www.va.gov/oig/contacts/hotline.asp> and clicking on "FAR clause 52.203-13 Reporting." If you experience difficulty accessing the website, call the Hotline at 1-800-488-8244 for further instructions.

SECTION D - CONTRACT DOCUMENTS, EXHIBITS, OR ATTACHMENTS

D.1. PERFORMANCE WORK STATEMENT (PWS)

Title: Ground Ambulance Services (VA Loma Linda Healthcare System)

1. **Purpose:** VA Loma Linda Healthcare System (VALLHCS), its associated Community-Based Outpatient Clinics (CBOCs), and affiliated healthcare clinics require contracted non-emergency ambulance transportation services. The contractor shall provide all vehicles, personnel, management, supplies, equipment, and necessary reporting for the provision of **Basic Life Support (BLS), Advanced Life Support (ALS), Specialty Care Transport (SCT) or Critical Care Transport (CCT) services.** The contractor shall make these ambulance services available to the VA as needed, 24 hours a day, seven days a week (24/7), including weekends and holidays.
2. **Background:** VALLHCS main campus is located at 11201 Benton Street, Loma Linda, CA 92357, serving over 80,000 veterans, primarily from the Riverside and San Bernadino area and it's eight (8) CBOC locations. The hospital has 270 inpatient beds and sees approximately 7,713 inpatient admissions and 471,434 outpatient visits a year. Veterans served by this facility live within the counties and zip codes listed in paragraphs 5.2.6 and 5.2.7.
3. **Acronyms**
 - ALS – Advanced Life Support
 - AOD – Administrative Officers of the Day
 - BLS – Basic Life Support
 - CCT – Critical Care Transport
 - CCTP – Critical Care Transport Paramedic
 - CCEMTP – Critical Care Emergency Medical Transport
 - CO – Contracting Officer
 - COR – Contracting Officer's Representative
 - CPR – Cardiopulmonary Resuscitation
 - DOL – Department of Labor
 - EMT – Emergency Medical Technician
 - IAW – In Accordance With
 - OO – Ordering Officer
 - PWS – Performance Work Statement
 - QASP – Quality Assurance Surveillance Plan
 - QC – Quality Control Plan
 - TB – Tuberculosis
 - TJC – The Joint Commission
 - VTs – Veteran Transportation Service

4. **Scope/Requirements**

4.1 Types of Ambulance Service

- 4.1.1. The contractor shall provide non-emergent Basic Life Support (BLS), Advanced Life Support (ALS), and Critical Care Transport (CCT) ambulance services on an as needed basis in accordance with all federal, state, and local regulations.

- 4.1.2. Occasionally a veteran will need to be transported with VA staff and equipment; the contractor shall return VA Staff and equipment to the original place of pick-up.

4.2 Transport of Miscellaneous Items with the Patient

The Contractor may also be required to transport patient luggage, medical records, medication, and comfort items from pickup points to destination at no additional cost to the Government. Luggage to be transported will be restricted to suitcase and valise types. When patients are transported to the VA Loma Linda Healthcare destination is deemed to be the ER, Admissions, the clinic, or service within the hospital, or directly to the ward as instructed by VA Staff.

4.3 Contractor Personnel: Contractor personnel shall be courteous and always conduct themselves in a businesslike manner while providing services under this contract.

4.3.1 Emergency Medical Technicians (EMTs), Critical Care Transport Paramedics (CCTPs) & Other Personnel

4.3.1.1 EMTs, CCTPs and other medical personnel (as applicable) shall at all times meet the qualifications specified in this contract as well as all applicable federal, state, and local government laws, regulations, and standards. EMTs, CCTPs and other medical personnel (as applicable) shall be certified, licensed, or otherwise officially recognized by the local, state, or regional government or public entity where the emergency service is operated or by which it is governed.

4.3.1.1 If the contractor wishes to add or replace personnel throughout the life of the contract, it shall provide evidence of required training, certifications, licensing, and any other qualifications to the Contracting Officer's Representative (COR) for review.

4.3.1.2 All ambulance drivers shall have a valid driver's license in accordance with state requirements for their place of operation and the services they perform. If the contractor wishes to add or replace drivers throughout the life of the contract, it shall provide a valid driver's license to the COR.

4.3.1.3 CCTPs shall meet all state requirements. Proof in the form of a current certificate for the successful completion of such must be provided to the COR upon request.

4.3.1.4 Investigative Requirements for Contract Personnel: Contract personnel will be subject to the same investigative requirements as those for regular VA appointees and employees. The level of investigation commensurate with the level of access to perform the performance work statement is: Special Agreement Checks (SAC). Fingerprinting for contract personnel will be conducted at VA Loma Linda Healthcare System. Thereafter the contracted employees will be subject annually to the same requirement, with a 90-day window to complete such requirement as provided by VA Loma Linda Healthcare System. The VA Security and Investigation Center (SIC) is responsible for adjudicating all background investigations for contract employees.

4.3.1.5 EMTs, CCTPs, and other contractor personnel as applicable must pass the Contractor's background check and must not have been convicted of (or have any pending charges for) a felony for the past five years. Personnel (and Contractor) must report any new or additional charges or convictions if they arise during the course of performance under this contract so VA can review them and determine whether the employee in question needs to be discharged of his or her duties until the matter is adjudicated.

4.3.2 Tuberculosis Exposure Control Policy

4.3.2.1 The contractor shall provide the VA with a policy on tuberculosis (TB) exposure and control, to include TB decontamination.

4.3.2.2 The contractor shall have its personnel tested for TB in accordance with state guidelines and provide written confirmation to the COR that all personnel (current employees and any new hires) performing services under this contract are current in their TB test by at the start of each Ordering Period.

4.4 Contractor Equipment, Vehicles, and Inspection

4.4.1 Ambulances shall meet all applicable federal, state, and local regulations and specifications, including but not limited to licensing, registration, and safety standards.

4.4.2 The VA reserves the right to inspect the contractor's equipment and vehicles or require documentation of compliance with state laws, rules, regulations, and guidelines governing emergency medical transport vehicles (ambulances). VA inspections of contractor equipment do not constitute a warranty or guarantee that the contractor's vehicles and equipment are properly maintained. The VA reserves the right to restrict the contractor's use of equipment and vehicles in the performance of this contract which are not in compliance with contract requirements. The restriction of such equipment and vehicles shall not relieve the contractor from performance in accordance with the contract nor necessitate additional cost to the VA.

4.4.3 Vehicles shall be clean and maintained in good repair in accordance with manufacturer's instructions.

4.4.4 The contractor shall not borrow or exchange supplies, equipment, and/or medications with the VA. Equipment attached to or in use by the patient at time of pick-up may remain with the patient during transport to ensure continuity of care. Medical Control Authorities are responsible for maintaining and supplying medication during patient transport. All VA equipment and unused medications must be returned to VA during patient drop-off or as promptly as feasible within 24 hours.

4.4.5 The contractor shall furnish all linen required for patient transport at no additional cost. Linen shall not be exchanged with linen belonging to VA Loma Linda Healthcare System or its CBOC locations.

4.4.6 The contractor must be capable of transporting the drugs and/or equipment as required by the patient as listed in **Attachment A** Specialty Care Transport (SCT) or Critical Care Transport (CCT) Capabilities Confirmation. The contractor

shall have the appropriate medications, including Specialty Care and Critical Care Transport, if necessary, based on the EMS region the ambulance provider is functioning in.

4.4.7 The contractor shall furnish qualified personnel as required by contract specifications to accomplish all services under this contract.

4.4.7.1 The contractor personnel performing services for the VA, shall, at all times, conduct themselves in a professional manner, and be identified by having the company name, and employee name affixed to the uniform. The Contractor shall be responsible for furnishing all vehicles, uniforms, nametags and/or badges for performance of services under this contract. Employee identifications shall be worn in clear view above the waist. The contractor personnel shall not smoke/play loud music originating from any device in vehicles while transporting VA patients.

4.4.7.2 Each driver shall possess a driver's license that is valid for the class of vehicle driven. Evidence of a special transportation service vehicle permit, or endorsement issued by the commissioner of public safety.

- Be at least 18 years of age and have not less than one year of experience as a licensed driver; and
 - For the past three years:
 - Have not had a driver's license canceled or suspended.
 - Have a driving record clear of convictions for operating a motor vehicle or motorcycle without insurance.
 - Have a driving record clear of convictions for driving a motor vehicle without a valid current license for the class of vehicle driven
 - Have a driving and criminal record clear of convictions for driving under the influence of alcohol or a controlled substance.

4.4.7.3 The contractor personnel will ensure that the patient is secured to the stretcher/cot and that the stretcher/cot is secure in the back of the ambulance before the vehicle moves.

4.4.7.4 Ambulance drivers shall have a valid driver's license in accordance with Federal, State, and local government requirements for their place of operation for the services they perform, be capable of administering oxygen and shall have successfully completed the standard and advanced first aid course of the American Red Cross of U.S. Bureaus of Mines of equivalent and be capable of providing necessary medical assistance to the attending emergency medical technician or paramedic.

4.4.7.5 Emergency Medical Technician (EMT) and Paramedic Qualifications: EMT's and Paramedic's providing services under this contract shall have the following qualifications, in additions to those required by Federal, State, and Local Government:

- Have completed training in accordance with the standards published by the Department of Health and Human

Services with a minimum curriculum of 150 hours or equivalent including an in-hospital training period. Such training programs must also be acceptable under the regulating requirements for local EMS Systems supported by DHHS under PL 93-154, Federal Register 39:24304. (1974).

- Shall be certified, licensed, or otherwise officially recognized by the local, state or regional government or public entity where the emergency ambulance service is operated or by which it is governed.

4.5 Transportation Request

4.5.1 VetRide or VA-Approved Transportation Software Utilization:

The contractor agrees to utilize the VetRide Vendor Portal or VA-Approved Transportation Software with every patient transported under this contract.

Department of Veteran Affairs will provide the software and access to the VetRide Vendor Portal or VA-Approved Transportation Software for the vendor/contractor in this contract. The Contractor will utilize the VetRide Vendor Portal or VA-Approved Transportation Software fully as instructed:

- a) Receive and respond to electronic trip requests.
- b) Receive, use, and ensure the use of the Vendor pass by the driver.
- c) Submit claims via the electronic HCFA 1500 in the VetRide Vendor Portal or VA-Approved Transportation Software system.
- d) All invoices must be submitted within 30 calendar days of date of service in accordance with 38 CFR 70 to be considered timely submission **(See note below)**.
 - i. The contractor's invoice must be on the HCFA 1500 to include:
 - ii. Contract Number
 - iii. Date of Service (to include Box 24 A-J)
 - iv. Authorization number(s)
 - v. Pick-up and drop-off location of the patient
 - vi. Base Rate
 - vii. Name (Last, First and Middle Initial (if any)) and Full Social Security number (Box 1a) of patient transported.
 - viii. Date of Birth and Sex
 - ix. Diagnosis Codes or Nature of Illness or Injury
 - x. Documentation of circumstances when billing for waiting time
 - xi. Any miscellaneous charges for which the contractor is expecting reimbursement i.e., Tool charges, waiting time, etc.
 - xii. VA authorizing official's name
 - xiii. Healthcare Procedure Coding System/National Level II (HCPCS)
- e) Unauthorized charges will be reviewed by the Contracting Officer Representative (COR) as to the validity of the charges and as to whether the payment will be made. A final determination will be made within 30 days after notifying the Contractor of the charges, which are being suspended.

Note: Invoices for government transportation contracts will transition from Tungsten to VetRide during the life of the contract. The CO will provide notice to the Contractor of the start date with updated instructions from those listed above. Until the transition has been approved, Contractor shall use Tungsten to submit all

invoices.

4.5.1.1 A transportation request is defined as one incidence of a request for one-way service (BLS, ALS, CCT). No more than one patient will be transported per order unless approved by an authorized VA staff. Transportation requests will be made through VetRide or VA-Approved Transportation Software Utilization. Contractors must have the capability to receive orders, update ride status, and input trip costs and other required data through this portal. Contractors must have dedicated staff available to monitor this portal 24/7. VA Loma Linda Healthcare System's Travel Program Staff will be available to assist with account setup and training for the Contractor's Staff. In the event VetRide or other VA-Approved Transportation Software Utilization is down, other methods of communication (i.e., telephone, facsimile) will be used to place Transportation requests.

4.5.1.1.1 VA Loma Linda Healthcare System's Travel Program Staff/or authorized VA employees will work with the Contractor the following business day to reconcile any transportation requests that were placed outside of VetRide or VA-Approved Transportation Software Utilization.

4.5.1.1.2 The Contractor must update VetRide or VA-Approved Transportation Software Utilization with any data and/or notes in real time that deviate from the original order such as

invoicing for additional mileage due to a road closure, wait time, reason for no load, etc.

VA Loma Linda Healthcare System's Travel Program Staff/or authorized VA employees may place a "hold" on payment of this order until it has been reconciled.

4.5.1.2 Only the following VA staff are authorized to place, cancel, or make changes to transportation requests:

- Contracting Officer (CO)
- Administrative Officer of the Day (AOD)
- Contracting Officer's Representative (COR)
- Ordering Officers (OO)
- Beneficiary Travel Office Staff

The Contracting Officer will furnish the Contractor with the names of individuals above, who are authorized as Ordering Officers, by separate memorandum upon issuance of the contract. The Contracting Officer will update this list throughout the life of the contract as Ordering Officers change.

Ordering Officers are responsible for issuing and administering orders placed under this contract. Ordering Officers have no authority to modify any term of this basic contract. Any deviation from the terms of the basic contract must be approved in writing by the Contracting Officer responsible for this contract. The Contractor shall accept orders against this contract only from the Contracting Officer and/or authorized ordering officers. Fulfilling orders from

persons other than the Contracting Officer or ordering officer may result in loss or delay in payment for supplies/services provided under such orders.

Non-authorized VA employees and private agencies (e.g., nursing homes) are not considered authorized to place transportation requests.

4.5.1.2.1 All patient pick-up(s) and drop-off(s) shall be authorized via “orders” which shall only be issued by the designated Ordering Officers. When placing orders for services, the Ordering Officer shall contact the designated contractor point of contact(s) to provide the following information:

- Mode of transportation required,
- Required time of arrival
- Name of the beneficiary,
- Pick-up and delivery point,
- Type and number of additional medical care specialists required,
- Type of equipment required,
- Last four of the patient's Social Security Number, and
- Any other special instructions

4.5.1.3 **For ALL Transports** – an Audit system will be put in place by the VA to include the COR or designee, Beneficiary Travel Department staff, and clinical staff to ensure appropriateness of the order and timeliness of the response.

4.5.1.4 **The type of transportation service (BLS, ALS, CCT)** required will be discussed and determined by VA clinical personnel and the contractor. The contractor shall transport the patient per its policies and standard industry practice. If the type of transportation service differs from what was agreed upon by the VA and contractor, the contractor shall submit documentation to the VA explaining its rationale.

4.5.1.5 The VA may authorize an escort (e.g., spouse, relative, guardian, etc.) to accompany the patient during medical transport if it is practicable and, in the patient's, best interest. The contractor shall allow the escort to accompany the patient at no additional cost.

4.5.1.6 The contractor shall have sufficient vehicles and personnel to provide services for up to **two (2)** simultaneous transportation requests. Transports required may be for **any mix of BLS, ALS transports**. One of these simultaneous transports may **require CCT capability**. If VA Loma Linda Healthcare System requires ambulance services exceeding **two (2)** simultaneous transportation requests, the vendor will be offered to provide the services if they have sufficient vehicles/personnel available; but may decline these additional orders if sufficient vehicles/personnel are unavailable.

4.5.1.7 The number of transports under normal operating conditions will typically range **from zero (0) to three (3) transports** each weekday and significantly less on weekends and holidays. The number of actual transports may vary throughout the life of the contract.

4.5.1.8 The patient may bring with her or him up to three (3) liters of oxygen. The contractor shall be responsible for providing adequate and safe storage of the oxygen tanks during transport.

4.5.1.9 Response Times*

4.5.1.9.1 Orders that are scheduled by 7 pm local time the day before the required services are defined as **scheduled in advance**. With the exceptions found below, the contractor shall arrive **on time for all orders** scheduled in advance.

4.5.1.9.2 Non-emergent Transport (Originating from VA (Only): The contractor shall be required to provide Ground Ambulance transportation within thirty (30) minutes of order/patient pick up call.

4.5.1.9.3 For all add-ons (not scheduled in advance) transportation requests, with pick up at the VA Healthcare System and associated CBOC locations; The contractor will be allotted up to a sixty (60) minute response time from time of order placement for transportation requests that are not previously scheduled in advance.

a. For an urgent transport request for a critical patient (as deemed by the physician) with pick up at VA Loma Linda Healthcare System, the contractor will be allotted up to a thirty (30) minute response time.

4.5.1.9.4 For transportation requests which do not have a pick-up at the main facility or associated CBOC locations:

a. The contractor may be required, if requested by the VA, to dispatch ambulances on short notice for transportation request not scheduled in advance; for these transportation requests the contractor shall dispatch ambulances within thirty (30) minutes of receiving the order.

b. Scheduled VA initiated appointment pick-up times shall be agreed upon by the VA and contractor at time of order placement and be reasonable based upon travel distance, speed limits, and weather conditions.

c. The contractor's patient pick-up time cannot be more than 15 minutes prior to the schedule pickup time nor 15 minutes later than the scheduled pickup time for transportation requests scheduled in advance.

* The contractor shall not be held liable for nonperformance caused by an occurrence beyond the reasonable control of the contractor and without its fault or negligence such as, acts of God or the public enemy, acts of the Government in its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, and unusually severe weather. **The contractor MUST notify the VA with as much advance notice as possible should any of these occur.**

4.5.2 Cancellations

4.5.2.1 For VA initiated transportation requests (Scheduled), if contractor is notified of cancellation before the vehicle is dispatched, there shall be no charge to the Government.

4.5.2.1.1 A “no show” is defined as a transportation request which is cancelled after the contractor has dispatched a vehicle, the vehicle is enroute, or has arrived at the pick-up location, and there is no longer a requirement for patient transportation. The contractor may request one-way reimbursement for no-shows. No-show reimbursement shall be based upon the base rate for the type of service requested (**BLS, ALS, and CCT**) and the one-way mileage (**BLS, ALS, and CCT**) accrued enroute to the pick-up location at time of cancellation. Mileage for no- show cancellations shall be confirmed by the contractor and reported to the VA as soon as possible from time of cancellation.

4.5.2.2 For add-on transportation requests out of VA Loma Linda Healthcare System's main facility and associated CBOC locations only (Unscheduled), The contractor will immediately dispatch a vehicle upon receipt of the order (including transportation requests in which the final destination may change prior to pick up due to the critical condition of the patient). When the contractor is notified of a cancellation prior to arrival at the VA Loma Linda Healthcare System campus, there shall be no charge to the Government.

4.6 Pick-Up/Drop-Off/Reporting Procedures

4.6.1 Ambulance personnel shall pick-up and deliver patients at specified locations (e.g., VA Loma Linda Healthcare System's Emergency Department Entrance). These locations will be specified by VA staff when an order is placed and communicated to the transporting personnel.

4.6.2 When applicable, ambulance personnel shall report to the Veteran Transportation Service (VTS) Dispatcher or Administrative Officer of the Day (AOD) to (1) announce his/her arrival to pick-up and transfer the patient and (2) obtain report of pertinent information regarding the patient's condition from the primary nurse/physician.

4.6.3 When delivering a patient, ambulance personnel shall give report to the appropriate VA healthcare staff and provide a copy of the run sheet which will be retained by the facility for inclusion to the patient's medical record.

4.6.4 In cases where ambulance personnel must divert to a local emergency department while performing a VA authorized transport, the contractor's dispatcher shall notify the VA Beneficiary Travel Department or Administrative Officer of the Day of the patient's location and status as soon as this information becomes available.

4.7 Patient Welfare

4.7.1 The contractor shall be responsible for the patient's welfare during transport. The contractor shall be held responsible for the patient and/or VA property during

transport. Any damaged or lost wheelchairs, walkers, crutches, or personal belongings shall be replaced at the contractor's expense.

- 4.7.2 The VA requires the contractor to exercise extreme caution and care in the handling of patients.
- 4.7.3 If a VA beneficiary being transported declines to be properly secured or removed the securement devices himself/herself, the driver will notify the Contracting Officer's Representative (COR) of this fact prior to departure. The contractor is not required to transport any VA beneficiary who refuses to be properly secured while being transported. In the event that the beneficiary refuses to be properly secured, they shall be returned back into the building which they came from.

4.8 Incident Reporting

- 4.8.1 The contractor shall notify the COR, Requestor, Program Manager, Beneficiary Travel Department, of any accidents and/or safety problems that occur while the patient is being transported. This notification shall occur within one (1) hour by telephone. A written report of the incident shall be delivered to the COR, Program Manager, or Beneficiary Travel Department, by the close of business of the next working day.
- 4.8.2 The COR will monitor the service provided. The contractor shall cooperate with the COR in providing information and answering questions in a timely manner. The contractor shall promptly inform the COR of any complaints received directly from patients. If warranted, the VA may conduct incident investigations and require written response from the contractor within 48 hours of request.

4.9 Invoicing

- 4.9.1 Each transport shall include thirty (30) minutes of wait time; the contractor may invoice for wait times in excess of this initial thirty (30) minutes. Wait time shall begin only once the contractor has both reached the pick-up address location and the appointment time has elapsed. All wait times shall be itemized and invoiced in fifteen (15) minute intervals. For partial fifteen (15) minute intervals, zero (0) to seven (7) minutes shall be rounded down to zero (0) minutes and eight (8) to fifteen (15) minutes rounded up to fifteen (15) minutes.
- 4.9.2 When invoicing for mileage, the contractor shall round to the nearest mile. Mileage ending in .5 or higher shall be rounded up to the nearest mile. Mileage ending in .4 or lower shall be rounded down to the nearest mile. Payment for mileage to or from the point of care shall be limited to the VA's calculation according to the VA's Bing Maps API determination. Bing Maps API is optimized to determine mileage based on the shortest time of travel.
- 4.9.3 If unloaded mileage exceeds loaded mileage, the contractor may invoice for a flat fee only if the following also occur:
 - Unloaded mileage exceeds 75 miles.
 - The contractor does not deviate from a route to intentionally make unloaded mileage exceed loaded mileage.
- 4.9.4 Except for no shows and trips when unloaded mileage exceeds loaded mileage in accordance with 4.9.3, the contractor shall invoice for loaded (patient onboard)

services and mileage only.

- 4.9.5 Upon notification of the contracting officer, the vendor must receive training and begin implementation of invoices via Vet Ride within 30 days versus VA Tungsten Network e-Invoicing network. Invoices must be submitted via the electronic HCFA 1500 in the VetRide Vendor Portal or other VA approved software. These invoices shall not include patient information, but shall include the following:

- Contractor Name
- Contract Number
- Current Purchase Order Number
- Date of service
- Total amount invoiced including a summary of the total number of charges that align with the line items of this contract (i.e., total number of BLS Base Rate, total BLS Mileage incurred, etc.)
- An itemized list of charges or services rendered that align with the line items of this contract (i.e., BLS Base Rate, BLS Mileage incurred, etc.)

Payment by VA under this contract to a provider of ground ambulance transportation services authorized under this contract extinguishes any and all liability on the part of the VA BENEFICIARY for that transportation service.

UNDER NO CIRCUMSTANCES ARE VA BENEFICIARIES, THIRD PARTY INSURANCES, MEDICARE, OR MEDICAID TO BE BILLED FOR THE SERVICES PERFORMED UNDER THIS CONTRACT.

5 General Information

- 5.3 This contract's ordering period shall be effective from **May 1, 2025, to September 30, 2029.**

- 5.4 Place of Performance: Ambulance services may be required to or from various locations including, but not limited to the following:

- 5.4.1 VA Loma Linda Healthcare System to include specific Atrium Clinics, Emergency Department, pavilions, or out-buildings on the VA Loma Linda Healthcare System campus. VA Loma Linda Healthcare System's address is: **11201 Benton Street, Loma Linda, CA 92357.**

- 5.4.2 VA Loma Linda Healthcare System's Community-Based Outpatient Clinics (CBOCs):

CBOC Name	Address
VALLHCS Ambulatory Care Center	26001 Redlands Blvd., Redlands, CA 92373
Blythe VA Clinic	1273 West Hobson Way, Blythe, CA 92225
Corona VA Clinic	280 Teller Street, Suite 120, Corona, CA 92879
Murrieta VA Clinic	25125 Madison Avenue, Murietta, CA 92562
Hemet Clinic	720 E. Latham Avenue, Hemet, CA 92543
Rancho Cucamonga VA Clinic	8160 Day Creek Blvd, Suite 120, Rancho Cucamonga, CA 91739
Sy Kaplan (Palm Desert) VA Clinic	72700 Dinah Shore Drive, Suite 200, Palm Desert, CA 92211
Victorville VA Clinic	14598 7th Street, Suite B, Victorville, CA 92395

5.4.3. Other VA Medical Centers or Hospitals within Veterans Integrated Service Network (VISN) 22 including but not limited to:

Facility	Address
Phoenix VA Health Care System	650 E. Indian School Road, Phoenix, AZ 85012
Northern Arizona VA Health Care System	500 Highway 89N, Prescott, AZ 86313
Southern Arizona VA Health Care System	3601 S. 6th Ave., Tucson, AZ 85723
New Mexico VA Health Care System	1501 San Pedro Drive SE, Albuquerque, NM 87108
VA Long Beach Health Care System	5901 E. 7th Street, Long Beach, CA 90822
VA San Diego Health Care System	3350 La Jolla Village Drive, San Diego, CA 92161
VA Greater Los Angeles Health Care System	11301 Wilshire Blvd, Los Angeles, CA 90073

5.4.4. Veteran's Residences.

5.4.5. Local Airports:

Los Angeles International Airport (LAX) 1 World Way
Los Angeles, CA 90045

San Diego International Airport (SAN) 3225 N. Harbor Dr.
San Diego, CA 92101

Ontario International Airport (ONT) 2900 E. Airport Dr.
Ontario, CA 91761

Long Beach Airport (LGB)
Donald Douglas Drive
Long Beach, CA 90808

John Wayne Airport (SNA)
18601 Airport Way
Santa Ana, CA 92707

5.4.6. San Bernadino Zip Codes Include but not Limited To:

92336	92335	92345	92376	91710	92880	91709	91730	92407	92404
91761	92346	92392	92324	91764	91786	91762	92399	92374	92410
92395	92308	92307	91739	91701	91763	92394	92337	92311	92301
92373	93555	92405	92316	92411	91784	92371	86406	92277	92377
91737	92354	92887	92344	92408	92313	92314	91708	92364	92252
92359	92365	92356	91798	92325	92342	92372	92352	92315	92363
92285	92397	92256	93516	92382	93562	92391	89019	92322	92415
92401	92310	92305	92242	92347	92321	92350	92341	92386	92317
92385	92332	92368	92331	92284	92358	91759	92327	92333	92339
92398	92378	92268	92318	92304	92267	92326	92412	92414	92424
93528	92338	92278	92286	92309	92312	92323	92329	92334	92340
92357	92366	92369	92375	92393	92402	92403	92406	92413	92423
92418	92427	91743	91758	91785	91729				

5.4.7. Riverside County Zip Codes Include but not Limited To:

92503	92509	92592	92880	92553	92563	92882	92201	92562	92571
92324	92530	92570	92507	92584	92223	92504	92544	92557	92505
92879	92234	92555	92506	92545	92236	92591	92596	92675	92240
92253	92508	92583	92543	91752	92551	92595	92373	92220	92883
92881	02203	92260	92262	92860	92284	92585	92211	92277	92532
92225	92501	92587	92586	92264	92582	92270	92274	92567	92320
92241	92276	92254	92590	92548	92210	92539	92536	92561	92282
92257	92230	92549	92518	92239	92292	92515	92521	92878	92877
92261	92263	92280	92502	92513	92514	91517	92516	92519	92522
92531	92546	92552	92554	92556	92564	92572	92581	92589	92593
92599	92202	92226	92235	92248	92247	92255	92258		

5.4.8 Contracting Officer Representative

TBD

Phone:

Email:

5.4.9. Hours of Operation:

VALLHCS's normal hours of operation are Monday through Friday, 4:00 am to 10:00 pm, exclusive of Federal Holidays; however, transportation services are required 24 hours/day, 7 days/week, including Federal Holidays.

5.4.10. Recognized Holidays:

The following holidays are observed by the Federal Government. If a Federal Holiday falls on a Saturday, the immediately preceding Friday will be observed as the holiday; if a Federal Holiday falls on a Sunday the immediately succeeding Monday will be observed as the holiday. In addition to those holidays listed below, on occasion there may be other holidays declared by Executive Order:

New Year's Day

Martin Luther King Jr.'s Birthday

President's Day

Memorial Day

Juneteenth

Independence Day

Labor Day

Columbus Day

Veteran's Day

Thanksgiving Day

Christmas Day

Note: The Contractor is required to perform on holidays should there be scheduled Transports.

5.4.11. Identification of Contractor Employees:

a. While performing services under the contract, all employees shall wear a uniform and name tag that readily identifies the company and the person as an employee of the Contractor. Uniforms are to be clean and maintained in good

repair. Drivers must maintain accepted standards of cleanliness and grooming and demonstrate courtesy to the patients being transported.

b. All contract personnel attending meetings, answering government telephones, and working in other situations where their contractor status is not obvious to third parties are required to identify themselves as such to avoid creating an impression in the minds of members of the public that they are Government officials.

c. Contract personnel shall ensure that all documents or reports produced by contractors are suitably marked as contractor products or that contractor participation is appropriately disclosed.

5.4.12. Site Visit:

VA Loma Linda requests a site visit on **May 18, 2025 @ 10 am PST** with all prospective vendors. Vendors will meet Mr. Oscar Cruz at VA Loma Linda's Ambulatory Care Center's flagpole. The facility is located at 26001 Redlands Blvd., Redlands CA 92373. Please RSVP by calling or emailing Mr. Cruz at:

WP: (909) 871-7838

Email: oscar.cruz17@va.gov

6. **Quality Control Plan**

6.4. Quality Control

6.4.3. The contractor shall maintain a Quality Control Plan (QCP) that contains, at a minimum, the following:

- 6.4.3.1. A description of the company's organizational structure including a description of the roles and responsibilities of management and supervisors.
- 6.4.3.2. A description of the methods to be used by the contractor for identifying and preventing deficiencies or problems in the quality of service.
- 6.4.3.3. A description of the specific steps the contractor will take for corrective action if needed if a deficiency or problem in the quality of service occurs.
- 6.4.3.4. A description of the company's records and tracking system used to identify up-to-date background checks, applicable certifications and tests, and training of each employee performing services under this contract.
- 6.4.3.5. A description of the method used to provide on-time ambulance services to meet the requirements of this contract (24/7 availability and up to 4 simultaneous transports in accordance with PWS 4.5.1.7).
- 6.4.3.6. A description of the methods used to identify and prevent radio communication breakdowns and a detailed procedure for alternative communications in the event of electronic and mechanical breakdown of vehicle two-way radios.

- 6.4.3.7. **CONTINGENCY PLAN:** (In case VetRide Vendor Portal is down) A description of the method/system used to log all requests for service. The contractor shall confirm that the log indicates the date and time of service call, actual time of pick-up versus the scheduled time, name of patient requiring services, designated pick-up and delivery points, mileage, and actual waiting time at pick-up and delivery points if waiting charges are claimed. The contractor shall confirm the log will be sent to the COR monthly.
- 6.4.4. The Government will evaluate the contractor's performance under this contract to ensure that the contractor's QCP is adequate, and that quality is achieved through a Quality Assurance Surveillance Plan (QASP).
- 6.4.5. The Government shall prepare a QASP after contract award derived from the PWS and contractor's submitted quality control plan. The QASP is a "living document" and the Government may review and revise it at any time. However, the Government shall coordinate changes to the QASP with the contractor.
- 6.4.6. The QASP will specify the work requiring surveillance and the Government's method of surveillance.

6.5. Minimum Performance Standards

- 6.5.3. The contractor shall maintain performance standards in accordance with the standards outlined in the table below. Failure to meet the Acceptable Quality Levels (AQL) may result in termination of the contract.
- 6.5.4. The QASP will include the standards below as well as others derived from the successful offeror's quality control plan.

Task	PWS Reference	Standard	Acceptable Quality Level	Method of Surveillance
Provide on-time ambulance services	Section 4.5.1.8.3	Scheduled patient pick-ups shall not deviate more than 15 minutes past scheduled pick-up time for scheduled orders	97%	Customer Feedback
Incident Reporting	Section 4.8	The contractor shall notify the Program Manager, Beneficiary Travel Department, of any accidents and/or safety problems that occur while the patient is being transported. This notification shall occur within one (1) hour by telephone. A written report of the incident shall be delivered to the Program Manager, Benefits Management, by the close of business of the next working day.	97%	Customer Feedback
Invoice Reports	Section 4.9	Provide a monthly invoice including secondary documentation in accordance with Section 4.10 of the PWS	95%	100% inspection of monthly invoices/reports

7. COVID-19 Or Other Similar Infectious Diseases

- 7.1 Contractor shall not refuse transports of COVID-19 positive or other similarly infected patients.
- 7.2 Contractor shall abide by all additional procedures and precautions that may be implemented by the VA based on VA-issued guidance and/or CDC recommendations. These procedures are subject to change throughout the life of the contract and will be incorporated via amendment.
- 7.3 Contractor shall have written policy of steps they will take to prevent the spread of COVID-19 or other similarly infectious diseases by their employees and/or vehicles. This policy shall, at a minimum, include procedures of screening drivers before each shift, deliberate decontamination of their vehicles and all other preventative precautions taken by Contractor employees.
- 7.4 Contractor shall furnish all required PPE throughout the life of the contract.

8 Conformity To Regulations

- 8.1 The contractor and his/her operators shall conform to all Federal, State, and local regulations governing the performance of contracted services.
- 8.2 VAMC facilities have been designated NO SMOKING areas in their entirety. Individuals found in violation of this no smoking policy may be subject to a \$50.00 federal citation for disregarding posted safety rules and regulations. Furthermore, the contractor may be directed to stop work. The contractor is to notify all of his/her employees and/or sub-contractors of this strict enforcement policy.

9 Wage Rates

- 9.1. Wage Determination(s) as listed in Section D in this solicitation are applicable to any resulting contract.
- 9.2. The contractor certifies by signature on this offer that the salaries to be paid workers involved in the performance of the contract are equal to or greater than those specified in the attached Wage Determination(s).
- 9.3 The Department of Labor has held that contractors must pay their employees the Service Contract Act waged while they are driving both to and from destinations for the VA. The Wage Determination is attached in Section D.

10 Evidence of Coverage

- 10.1 Before commencing work under the contract, the contractor shall furnish the Contracting Officer with a certification from his/her insurance company indication that the coverage outlined in this contract has been obtained and that it may not be changed or canceled during the term of the contract.

11 Worker's Compensation

- 11.1 The Act of June 25, 1936, 42 Stat. 1938 (40 USC 290), authorized the constituted authority of the several states to apply their workmen's compensation laws to all lands and

premises owned or held by the United States. The contractor agrees to procure and maintain while the contract is in effect, Worker's Compensation and Employers Public Liability insurance. The policy shall provide coverage for Public Liability Limits of not less than the statutory limitations for any one accident, and at least meet the statutory limitations if more than one person is involved. , Upon award of the contract, the contractor shall furnish to the Contracting Officer a certificate from its insurance company indicating that this coverage has been obtained and that such coverage may not be changed or canceled unless 30 day advance written notice is provided to the Contracting Officer.

12 Contractor Personnel Security Requirements

12.1 All contractor employees who require access to the Department of Veterans Affairs' computer systems or who come into contact with veteran/beneficiaries shall be the subject of a background investigation and must receive a favorable adjudication from the VA Office of Security and Law Enforcement prior to contract performance. This requirement is applicable to all subcontractor personnel requiring the same access. If the investigation is not completed prior to the start date of the contract, the contractor will be responsible for the actions of those individuals they provide to perform work for the VA.

Position Sensitivity - The position sensitivity for this contract has been designated as LOW RISK.

Background Investigation - The level of background investigation commensurate with the required level of access for this contract is National Agency Check with Written Inquiries. Contractor Responsibilities:

- The contractor shall pre-screen all personnel requiring VA access to ensure they maintain a U.S. citizenship and are able to read, write, speak, and understand the English language.
- The contractor shall submit or have their employees submit to the COR completed background investigation forms requested by Department of Veterans Affairs, Office of Security and Law Enforcement, Security and Investigations Center, 2200 Fort Roots Drive Bldg. 104, North Little Rock, AR 72114 within 30 days of contract award.
- The contractor, when notified of an unfavorable determination by the Government, shall withdraw the employee from consideration from working under the contract. Failure to comply with the contractor personnel security requirements may result in termination of the contract or cause.

The contractor shall agree that all deliverables, associated working papers, and other material deemed relevant by the contractor in the performance of this task order are the property of the United States Government. The contractor shall agree that all individually identifiable health information shall be treated with the strictest confidentiality. Access to records shall be limited to essential personnel only. Records shall be secured when not in use. At the conclusion of the contract, all copies of individually identifiable health records shall be destroyed or returned to the VA. Any individually identifiable health records shall be deleted from computers not belonging to the VA. The contractor shall comply with the Privacy Act, 38 U.S.C. 5701, 38 U.S.C. 7332, and 5 U.S.C. 552(a) et. Seq. Contractor staff shall sign confidentiality statements before the start date of the contract. The contractor shall comply with all provisions of the Health Information Portability and Accountability Act (HIPAA), including but not limited to privacy, security of electronic health data, and adherence to standards and code sets as required by HIPAA. The contractor shall ensure the confidentiality of all patient and employee information and shall be held liable in the event of breach of confidentiality. Any person, who knowingly or willingly discloses

confidential information obtained from the VA with non-essential persons, may be subject to fines.

12.1.1 HIPAA COMPLIANCE. HIPAA compliance is required. The contractor must adhere to the provisions of Public Law 104-191, Health Insurance Portability and Accountability Act (HIPAA) of 1996 and the National Standards to Protect the Privacy and Security of Protected Health Information (PHI). As required by HIPAA, the Department of Health, and Human Services (HHS) has promulgated rules governing the security and use and disclosure of protected health information by covered entities, including the Department of Veterans Affairs (VA). In accordance with HIPAA, the contractor may be required to enter into a Business Associate Agreement (BAA) with VA.

12.1.2 BLOOD BORNE PATHOGENS: The contractor and the employees provided, pursuant to this contract, shall comply with the effective VAMC Policy (and Occupational Health requirements in accordance with OSHA Blood Borne Pathogens (BBP) Law and the OSHA Tuberculosis Compliance Directive, enforceable under OSHA's General Duty Clause) governing health care workers infected with a blood borne pathogen. If the contractor obtains information that a health care worker providing care pursuant to this agreement may be infected with a blood borne pathogen, the contractor will advise the Contracting Officer immediately.

13 Medical Liabilities Insurance

13.1 The contractor shall carry required insurance (See VAAR Clause 852.237-7 INDEMNIFICATION AND MEDICAL LIABILITY INSURANCE) and vehicle insurance in accordance with the State of California, Department of Health Services.

14 Annual VHA Training

14.1 In accordance with VHA Directive 2003-028 "Compliance and Business Integrity Program", its updates or replacement directives, IG Guidance at 8994, Section II(C); Guidance at 4875, Section III (B)(4) Sentencing Guidelines, Section 8B2.1 (b) (4) (B) annual compliance training is to be provided to all contractors within the scope of their work. The medical center COTR's are to coordinate the annual training with their respective Contracting Officer and Compliance and Business Integrity Officers. A copy of the documentation of the completed annual training is to be provided to the Compliance and Business Integrity Officers for their files.

In accordance with VHA Directive 1605.1 "Privacy and Release of Information", updates or replacement directives annual VHA Privacy Policy Training is to be provide to all contractors within the scope of their work. A copy of the documentation of the completed annual training is to be provided to the Contracting Officer and the facility Privacy Officer for their files.

In accordance with VA Directive 6500, "Information Security Program", updates or replacement directives annual VHA Cyber and Security Information Training is to be provided to all contractors within the scope of their work. A copy of the documentation of the completed annual training is to be provided to the Contracting Officer and the facility Information Security Officer for their files.

15 Conformance with Environmental Management Systems

15.1 The contractor shall perform work under this contract consistent with the relevant policy and objectives identified in the agency, organizational, or facility environmental management system (EMS) applicable for your contract. The contractor shall perform work in a manner

that conforms to all appropriate Environmental Management Programs and Operational Controls identified by the agency, organizational, or facility EMS, and provide monitoring and measurement information as necessary for the organization to address environmental performance relative to the environmental, energy, and transportation management goals. In the event an environmental nonconformance or noncompliance associated with the contracted services is identified, the contractor shall take corrective and/or preventative actions. In the case of a noncompliance, the contractor shall respond and take corrective action immediately. In the case of a nonconformance, the contractor shall respond and take corrective action based on the time schedule established by the EMS Site Coordinator. In addition, the Contractor shall ensure that their employees are aware of the roles and responsibilities identified by the environmental management system and how these requirements affect their work performed under this contract.

All on-site contractor personnel shall complete yearly EPA sponsored environmental training specified for the type of work conducted on-site. Upon contract award, the Contracting Officer's Representative will notify the facility-level Environmental Management Systems Coordinator to arrange EMS training for appropriate staff.

**16 Contractor Performance Assessment Rating System (CPARS)
Required Registration with Contractor Performance Assessment Rating System (CPARS)**

16.1 As prescribed in Federal Acquisition Regulation (FAR) Part 42.15, the Department of Veterans Affairs (VA) evaluates contractor past performance on all contracts that exceed \$1,000,000 and shares those evaluations with other Federal Government contract specialists and procurement officials. The FAR requires that the contractor be provided an opportunity to comment on past performance evaluations prior to each report closing. To fulfill this requirement VA uses an online database. The CPARS database information is shared with the Past Performance Information Retrieval System (PPIRS) database, which is available to all Federal Agencies.

16.2 Each contractor whose contract award is estimated to exceed \$1,000,000 is required to register with the Contractor Performance Assessment Rating System (CPARS) database at the following <https://www.cpars.gov/> or by calling (207) 438-1690. Registration should occur no later than thirty days after contract award and must be kept current should there be any change to the contractor's registered representative.

16.3 For contracts with a period of one year or less, the contracting officer will perform a single evaluation when the contract is complete. For contracts exceeding one year, the contracting officer will evaluate the contractor's performance annually. Interim reports will be filed each year until the last year of the contract when the final report will be completed. The report shall be assigned in CPARS to the contractor's designated representative for comment. The contractor representative will have thirty days to submit any comments and re-assign the report to the VA contracting officer.

16.4 Failure to have a current registration in the CPARS database, or to re-assign the report to the VA contracting officer within those thirty days, will result in the Government's evaluation being placed on file in the database with a statement that the contractor failed to respond.

Surveillance Checklist

VA Loma Linda Healthcare System

Contract: Ground Ambulance	Date/Time of Inspection:	Government POC Primary: Government POC Alternate:
Organization: VA Loma Linda Healthcare System	Location: Bldg. Post	

SS	Performance Objective	PWS Para	Performance Threshold	Method of Surveillance	Met	Not Met	Remarks
SS 1	The contractor shall provide Ambulance service, 24 hours per day, 365 days per year, as required in accordance with the terms and conditions contained herein.	1	95% Compliance	100% Surveillance of each patient pick-up.			
SS 2	The objective of Standards for Maintenance is to protect veterans and to cause no harm to all parties. The contractor shall maintain all vehicles in a clean and orderly condition, free from debris and accumulations which may create an accident, injury, or fire hazard.	4.4.3	95% Compliance	100% Surveillance			
SS3	The contractor shall maintain (and furnish upon request) procedures that outline preventive maintenance and/or repairs on each vehicle in an individual vehicle file and in chronological order, latest service on top. A statement from the Contractor indication compliance of vehicle maintenance files is in	4.4.3	95% Compliance	100% Surveillance			

SS	Performance Objective	PWS Para	Performance Threshold	Method of Surveillance	Met	Not Met	Remarks
	place should be submitted at time of offer for evaluation purposes. Requested submission and verification of these documentation requirements will be a quality assurance procedure during the contract period.						
SS4	The contractor shall furnish qualified personnel as required by contract specifications to accomplish all services under this contract.	4.3.1	100% Compliance	100% Surveillance			
SS5	Have completed training in accordance with the standards published by the Department of Health and Human Services with a minimum curriculum of 150 hours or equivalent including an in-hospital training period. Such training programs must also be acceptable under the regulating requirements for local EMS Systems supported by DHHS under PL 93-154, Federal Register 39:24304. (1974).	4.3.1	100% Compliance	100% Surveillance			
SS6	A licensed MTO shall ensure that sanitation procedures are provided to all personnel in a written document that conforms with current standards as set forth in occupational safety and health administration-blood borne pathogens protocol.	Attachment B	100% Compliance	100% Surveillance			

Attachment A

Specialty Care Transport (SCT) or Critical Care Transport (CCT)

Confirmation

If a transport is classified as a Critical Care Transport (CCT) the offeror must be capable of transporting the drugs and/or equipment as required by the patient (listed below), up to and including Specialty Care Transport (SCT) or Critical Care Transport (CCT), if necessary, based on the EMS region the ambulance provider is functioning in. Prospective offerors must sign and return this form confirming they can meet these criteria for CCTs ordered under this contract.

Drug Supply List:

Acetylcysteine (Acetadote, Mucomyst)
 Amiodarone (Cordarone)
 Antibiotics
 Blood and Blood Products
 Diltiazem (Cardizem)
 Dobutamine
 Dopamine
 Fentanyl (Sublimaze)
 Furosemide (Lasix)
 Heparin
 Hyperalimentation
 (TPN and lipids)
 Insulin
 Labetalol (Trandate)
 Lidocaine
 Lorazepam (Ativan)
 Magnesium Sulfate
 Mannitol
 Midazolam (Versed)
 Milrinone (Primacor)
 Nicardipine (Cardene)
 Nitroglycerin (NitroStat, Nitro-Dur, Nitro-Bid)
 Norepinephrine (Levophed)
 Octreotide (Sandostatin)
 Ondansetron (Zofran)
 Pantoprazole (Protonix)
 Phenylephrine (Neo-Synephrine)
 Potassium Chloride
 Propofol
 Sodium Bicarbonate
 Vasopressin (Pitressin)
 TPA* (Pending)

Equipment List:

Chest tubes
 Portable mechanical vents; including CPAP
 All VADs
 CVP lines
 Swan-Ganz line
 SmartPump Capability: up to 6 IV drips

***Any pump(s) capable for up to and including 6 infusion lines or IV drips as required by the patient. If the pumps are not compatible with VA supplied IV tubing, the contracted ambulance would need to provide their own tubing and be able to**

Zoll X Series Critical Care Monitor Capabilities:

Continuous 12-lead EKG monitoring

2-Temperature Monitoring

I hereby confirm that _____ can meet the criterion for Critical Care Transports.

(Company Name)

 Signature of Company Representative

 Date

D.2 WAGE DETERMINATION

SCA Wage Determination #: [2015-5629](#), Revision 24, Date: July 22, 2024. Reference: [SAM.gov | Wage Determinations](#)

D.3 PAST PERFORMANCE QUESTIONNAIRE

The below-named contractor is being considered for award of a contract for **Solicitation No. 36C26225R0018, VA Loma Linda Health Care Systems (VALLHCS) Non-Emergent Ground Ambulance Services**. A primary consideration in our selection process is the contractor's history of performance of similar efforts. **PLEASE COMPLETE FORM and RETURN TO: Michael.Williams48@va.gov . FORMS MUST BE RECEIVED BY THE CONTRACTING OFFICER NLT March 31, 2025 (3:00 pm, PST)**

A. GENERAL INFORMATION

Contractor's Name: _____

Address: _____

Telephone Number: _____ Point of Contact: _____

B. RESPONDENT INFORMATION

Name: _____ Title: _____

Organization & Address: _____

Telephone: _____ Fax: _____ Email: _____

C. CONTRACT INFORMATION

Contract Number/Title: _____

Period of Performance: _____

Current/Cumulative Dollar Amount of Contract: _____

Description of Services Performed: _____

D. PERFORMANCE INFORMATION

Choose the category on the below scale that most accurately describes the contractor's performance or situation.

E	V	S	M	U	N
Exceptional	Very Good	Satisfactory	Marginal	Unsatisfactory	Neutral

Please use the above ratings to describe the contractor's performance in the following areas:

MANAGEMENT EFFECTIVENESS	
a. Contractor provided experienced supervision and personnel with technical and administrative abilities to meet contract requirements	E V S M U N

b. Contractor's overall management effectiveness	E V S M U N
--	-------------

COMMENTS/REMARKS: _____

2. QUALITY OF SERVICE AND WORKMANSHIP	
a. Contractor provided acceptable/immediate response when issues arose.	E V S M U N
b. Contractor's overall quality of service.	E V S M U N

COMMENTS/REMARKS: _____

3. TIMELINESS/ADHERENCE TO SCHEDULES	
a. Contractor responded to technical support issues in a timely manner.	E V S M U N
b. Overall contractor timeliness	E V S M U N

COMMENTS/REMARKS: _____

4. CUSTOMER SATISFACTION	
a. Contractor maintained a professional working relationship	E V S M U N
b. Contractor was reasonable and cooperative in resolving any customer complaints	E V S M U N
c. Contractor was flexible in responding to customer requirements	E V S M U N
d. Overall customer satisfaction	E V S M U N

COMMENTS/REMARKS: _____

5. If a government contract, did the contractor receive any Contract Discrepancy Reports, Letters of Concern, or Cure Notices? _____ if yes, please describe:

6. If given the opportunity, would you award another contract to this contractor? Please explain response below.

D.4 BUSINESS ASSOCIATE AGREEMENT BETWEEN THE DEPARTMENT OF VETERANS AFFAIRS VETERANS HEALTH ADMINISTRATION, , AND

Purpose. The purpose of this Business Associate Agreement (Agreement) is to establish requirements for the Department of Veterans Affairs (VA) Veterans Health Administration (VHA) and in accordance with the Health Insurance Portability and Accountability Act (HIPAA), the Health Information Technology for Economic and Clinical Health Act (HITECH) Act, and the HIPAA Privacy, Security, Breach Notification, and Enforcement Rules ("HIPAA Rules"), 45 C.F.R. Parts 160 and 164, for the Use and Disclosure of Protected Health Information (PHI) under the terms and conditions specified below.

Scope. Under this Agreement and other applicable contracts or agreements, will provide services to, for, or on behalf of .

In order for to provide such services, will disclose PHI to and will use or disclose PHI in accordance with this Agreement.

Definitions. Unless otherwise provided, the following terms used in this Agreement have the same meaning as defined by the HIPAA Rules: Breach, Data Aggregation, Designated Record Set, Disclosure, Health Care Operations, Individual, Minimum Necessary, Notice of Privacy Practices, Protected Health Information (PHI), Required by Law, Secretary, Security Incident, Subcontractor, Unsecured Protected Health Information, and Use.

"Business Associate" shall have the same meaning as described at 45 C.F.R. § 160.103. For the purposes of this Agreement, Business Associate shall refer to , including its employees, officers, or any other agents that create, receive, maintain, or transmit PHI as described below.

"Covered Entity" shall have the same meaning as the term is defined at 45 C.F.R. § 160.103. For the purposes of this Agreement, Covered Entity shall refer to .

"Protected Health Information" or "PHI" shall have the same meaning as described at 45 C.F.R. § 160.103. "Protected Health Information" and "PHI" as used in this Agreement include "Electronic Protected Health Information" and "EPHI." For the purposes of this Agreement and unless otherwise provided, the term shall also refer to PHI that Business Associate creates, receives, maintains, or transmits on behalf of Covered Entity or receives from Covered Entity or another Business Associate.

"Subcontractor" shall have the same meaning as the term is defined at 45 C.F.R. § 160.103. For the purposes of this Agreement, Subcontractor shall refer to a contractor of any person or entity, other than Covered Entity, that creates, receives, maintains, or transmits PHI under the terms of this Agreement.

Terms and Conditions. Covered Entity and Business Associate agree as follows:

1. Ownership of PHI. PHI is and remains the property of Covered Entity as long as Business Associate creates, receives, maintains, or transmits PHI, regardless of whether a compliant Business Associate agreement is in place.

2. Use and Disclosure of PHI by Business Associate. Unless otherwise provided, Business Associate:

A. May not use or disclose PHI other than as permitted or required by this Agreement, or in a manner that would violate the HIPAA Privacy Rule if done by Covered Entity, except that it may use or disclose PHI:

(1) As required by law or to carry out its legal responsibilities;

(2) For the proper management and administration of Business Associate; or

(3) To provide Data Aggregation services relating to the health care operations of Covered Entity.

B. Must use or disclose PHI in a manner that complies with Covered Entity's minimum necessary policies and procedures.

C. May de-identify PHI created or received by Business Associate under this Agreement at the request of the Covered Entity, provided that the de-identification conforms to the requirements of the HIPAA Privacy Rule.

3. Obligations of Business Associate. In connection with any Use or Disclosure of PHI, Business Associate must:

A. Consult with Covered Entity before using or disclosing PHI whenever Business Associate is uncertain whether the Use or Disclosure is authorized under this Agreement.

B. Implement appropriate administrative, physical, and technical safeguards and controls to protect PHI and document applicable policies and procedures to prevent any Use or Disclosure of PHI other than as provided by this Agreement.

C. Provide satisfactory assurances that PHI created or received by Business Associate under this Agreement is protected to the greatest extent feasible.

D. Notify Covered Entity within twenty-four (24) hours of Business Associate's discovery of any potential access, acquisition, use, disclosure, modification, or destruction of either secured or unsecured PHI in violation of this Agreement, including any Breach of PHI.

(1) Any incident as described above will be treated as discovered as of the first day on which such event is known to Business Associate or, by exercising reasonable diligence, would have been known to Business Associate.

(2) Notification shall be sent to and to the VHA Health Information Access Office, Business Associate Program Manager by email at VHABAAIssues@va.gov.

(3) Business Associate shall not notify individuals or the Department of Health and Human Services directly unless Business Associate is not acting as an agent of Covered Entity but in its capacity as a Covered Entity itself.

E. Provide a written report to Covered Entity of any potential access, acquisition, use, disclosure, modification, or destruction of either secured or unsecured PHI in violation of this Agreement, including any Breach of PHI, within ten (10) business days of the initial notification.

(1) The written report of an incident as described above will document the following:

(a) The identity of each Individual whose PHI has been, or is reasonably believed by Business Associate to have been, accessed, acquired, used, disclosed, modified, or destroyed;

(b) A description of what occurred, including the date of the incident and the date of the discovery of the incident (if known);

(c) A description of the types of secured or unsecured PHI that was involved;

(d) A description of what is being done to investigate the incident, to mitigate further harm to Individuals, and to protect against future incidents; and

(e) Any other information as required by 45 C.F.R. §§ 164.404(c) and 164.410.

(2) The written report shall be addressed to:

and submitted by email to and to the VHA Health Information Access Office, Business Associate Program Manager at VHABAAIssues@va.gov

F. To the greatest extent feasible, mitigate any harm due to a Use or Disclosure of PHI by Business Associate in violation of this Agreement that is known or, by exercising reasonable diligence, should have been known to Business Associate.

G. Use only contractors and Subcontractors that are physically located within a jurisdiction subject to the laws of the United States, and ensure that no contractor or Subcontractor maintains, processes, uses, or discloses PHI in any way that will remove the information from such jurisdiction. Any modification to this provision must be approved by Covered Entity in advance and in writing.

H. Enter into Business Associate Agreements with contractors and Subcontractors as appropriate under the HIPAA Rules and this Agreement. Business Associate:

(1) Must ensure that the terms of any Agreement between Business Associate and a contractor or Subcontractor are at least as restrictive as Business Associate Agreement between Business Associate and Covered Entity.

(2) Must ensure that contractors and Subcontractors agree to the same restrictions and conditions that apply to Business Associate and obtain satisfactory written assurances from them that they agree to those restrictions and conditions.

(3) May not amend any terms of such Agreement without Covered Entity's prior written approval.

I. Within five (5) business days of a written request from Covered Entity:

(1) Make available information for Covered Entity to respond to an Individual's request for access to PHI about him/her.

(2) Make available information for Covered Entity to respond to an Individual's request for amendment of PHI about him/her and, as determined by and under the direction of Covered Entity, incorporate any amendment to the PHI.

(3) Make available PHI for Covered Entity to respond to an Individual's request for an accounting of Disclosures of PHI about him/her.

J. Business Associate may not take any action concerning an individual's request for access, amendment, or accounting other than as instructed by Covered Entity.

K. To the extent Business Associate is required to carry out Covered Entity's obligations under Subpart E of 45 CFR Part 164, comply with the provisions that apply to Covered Entity in the performance of such obligations.

L. Provide to the Secretary of Health and Human Services and to Covered Entity records related to Use or Disclosure of PHI, including its policies, procedures, and practices, for the purpose of determining Covered Entity's, Business Associate's, or a Subcontractor's compliance with the HIPAA Rules.

M. Upon completion or termination of the applicable contract(s) or agreement(s), return or destroy, as determined by and under the direction of Covered Entity, all PHI and other VA data created or received by Business Associate during the performance of the contract(s) or agreement(s). No such information will be retained by Business Associate unless retention is required by law or specifically permitted by Covered Entity. If return or destruction is not feasible, Business Associate shall continue to protect the PHI in accordance with the Agreement and use or disclose the information only for the purpose of making the return or destruction feasible, or as required by law or specifically permitted by Covered Entity. Business Associate shall provide written assurance that either all PHI has been returned or destroyed, or any information retained will be safeguarded and used and disclosed only as permitted under this paragraph.

N. Be liable to Covered Entity for civil or criminal penalties imposed on Covered Entity, in accordance with 45 C.F.R. §§ 164.402 and 164.410, and with the HITECH Act, 42 U.S.C. §§ 17931(b), 17934(c), for any violation of the HIPAA Rules or this Agreement by Business Associate.

4. Obligations of Covered Entity. Covered Entity agrees that it:

A. Will not request Business Associate to make any Use or Disclosure of PHI in a manner that would not be permissible under Subpart E of 45 C.F.R. Part 164 if made by Covered Entity, except as permitted under Section 2 of this Agreement.

B. Will promptly notify Business Associate in writing of any restrictions on Covered Entity's authority to use or disclose PHI that may limit Business Associate's Use or Disclosure of PHI or otherwise affect its ability to fulfill its obligations under this Agreement.

C. Has obtained or will obtain from Individuals any authorization necessary for Business Associate to fulfill its obligations under this Agreement.

D. Will promptly notify Business Associate in writing of any change in Covered Entity's Notice of Privacy Practices, or any modification or revocation of an Individual's authorization to use or disclose PHI, if such change or revocation may limit Business Associate's Use and Disclosure of PHI or otherwise affect its ability to perform its obligations under this Agreement.

5. Amendment. Business Associate and Covered Entity will take such action as is necessary to amend this Agreement for Covered Entity to comply with the requirements of the HIPAA Rules or other applicable law.

6. Termination.

A. Automatic Termination. This Agreement will automatically terminate upon completion of Business Associate's duties under all underlying Agreements or by termination of such underlying Agreements.

B. Termination Upon Review. This Agreement may be terminated by Covered Entity, at its discretion, upon review as provided by Section 9 of this Agreement.

C. Termination for Cause. In the event of a material breach by Business Associate, Covered Entity:

(1) Will provide an opportunity for Business Associate to cure the breach or end the violation within the time specified by Covered Entity;

(2) May terminate this Agreement and underlying contract(s) if Business Associate does not cure the breach or end the violation within the time specified by Covered Entity.

D. Effect of Termination. Termination of this Agreement will result in cessation of activities by Business Associate involving PHI under this Agreement.

E. Survival. The obligations of Business Associate under this Section shall survive the termination of this Agreement as long as Business Associate creates, receives, maintains, or transmits PHI, regardless of whether a compliant Business Associate Agreement is in place.

7. No Third Party Beneficiaries. Nothing expressed or implied in this Agreement confers any rights, remedies, obligations, or liabilities whatsoever upon any person or entity other than Covered Entity and Business Associate, including their respective successors or assigns.

8. Other Applicable Law. This Agreement does not abrogate any responsibilities of the parties under any other applicable law.

9. Review Date. The provisions of this Agreement will be reviewed by Covered Entity every two years from Effective Date to determine the applicability and accuracy of the Agreement based on the circumstances that exist at the time of review.

10. Effective Date. This Agreement shall be effective on the last signature date below.

Department of Veterans Affairs/Veterans Health Administration

By:

Name:

Title:

Date:

By:

Name:

Title:

Date:

SECTION E - SOLICITATION PROVISIONS

E.1 ADDENDUM to FAR 52.212-1 INSTRUCTIONS TO OFFERORS— COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

Offerors are notified that VA Form 10091, FMS Vendor File Request Form and W-9 Request for Taxpayer Identification Number and Certification (See attached documents) must be submitted through FSC's Customer Engagement Portal at <https://www.cep.fsc.va.gov>.

If vendors have any questions regarding the use of the portal, please contact the VA Customer Care Center at 1-877-353-9791, option 2 or vafscchd@va.gov. In addition, please submit a copy of the VA Form 10091 and W-9 with your quote. Failure to include this information may eliminate the offeror from award consideration or considerably delay the award.

INSTRUCTIONS TO OFFERORS:

Offerors shall submit only one proposal which addresses all Government requirements outlined in this solicitation. Offerors must ensure that Past Performance references return the Past Performance Questionnaire [Minimum of three (3)] by the due date and time for Proposal submission. Late submissions, modifications and withdrawals will be handled as described in provision 52.212-1 "Instructions to Offerors – Commercial Items". Communications conducted to resolve minor or clerical errors will not constitute discussions, and the Contracting Officer reserves the right to award a contract without the opportunity for proposal revision.

- Telegraphic offers (submitted by telegram or mailgram) will not be accepted.
- Facsimile offers will not be accepted.

Amendments to this Solicitation: Offerors are encouraged to monitor the Contract Opportunities website at www.sam.gov/opportunities with respect to this solicitation because any amendments to this Solicitation will be posted on that website.

Single Award Anticipated: The Government anticipates making a single award as a result of the solicitation.

GENERAL INSTRUCTION FOR PROPOSAL SUBMISSION

Format of Proposal: In order to be considered for selection, the Offeror must submit a complete response to this solicitation using the sequence and format instructions provided. All information pertaining to Technical Capabilities, Past Performance, Veterans Involvement Factor, and Price shall be confined to the appropriate proposal volume in order to facilitate independent evaluation. Proposals shall be clear and concise, logically assembled (with all pages appropriately numbered) and indexed and cross-indexed to applicable parts of the Performance Work Statement (PWS) or Request for Proposal, as appropriate. To reduce proposal size, the Offeror shall confine submission to essential matters sufficient to define the proposal and provide an adequate basis for evaluation. No Price information shall be presented in any part of the proposal except the Price proposal. Proposal volumes shall not contain classified data.

Offerors should address the criteria contained in Section E, FAR 52.212-2, Evaluation – Commercial Items, rather than attempt to address each PWS paragraph or reference. Unnecessarily elaborate or lengthy proposals are not desired. Unless specifically stated, do not paraphrase the requirements of the PWS, or use phrases such as "unsurpassed levels of

reliability,” or “standard techniques will be employed.” Proposals that merely mimic the PWS may result in a lower rating.

Submittal Instructions: The proposal submission must consist of two separate volumes, formatted on 8” x 11” sized paper, using 12 font print entitled: “Volume I: Technical Proposal” and “Volume II: Price Proposal”. The Contractor’s proposal must consist of two separate binders for Volume I and Volume II individually titled and numbered on the exterior of the top covers (subject line). The signed 1449 should be filed in Volume II. The Contractor’s package must be labeled with the Contractor’s name and business address of firm, the solicitation number 36C26225R0018, Non-Emergent Ambulance Service VA Loma Linda Healthcare System, and point of contact to include name, telephone and email address. The Government is not responsible for identifying inconsistencies between the two and may rely on either version at its discretion.

Required Submittals:

- a) Technical Expertise (ten-page limit)
Description of the Contractor’s technical approach to perform ALL TASKS. The Contractor must demonstrate its ability to undertake the PWS requirements from award to completion.
- b) Related Experience (fifteen page-limitation)
Contractor shall demonstrate its expertise in providing assistance comparable to the tasks described in the PWS. The following information must be included: Overview of the Contractor’s background and organizational history, including number of years in operation, total number of employees, a description of services provided (past and present), and types of programs operated (past and present). A description of any material legal proceedings against the Contractor by any Federal or State regulatory agencies that would impact an engagement of this nature. Including any tax matters deferred and/or currently paying. Description of the Contractor’s organizational competencies and/or areas of expertise related to the provision of the tasks described in the PWS.
- c) Key Positions (no page limitation)
Identification of all positions proposed to work on this contract, including a project manager with overall responsibility for coordinating the work to be completed under this contract. For all positions, identify their roles and responsibilities, and the personnel skills, training and experience to perform the identified tasks.
- d) Quality Control Plan.
The Offeror’s proposed quality control plan (QCP) will be evaluated for relevance as will the Offeror’s identification and demonstrated understanding of key quality control elements important to oversight and surveillance of the work.
- e) Business license to operate (Provide documentation)
- f) All insurances stated in the solicitation (Provide documentation).
- g) Policy on tuberculosis (TB) exposure and control, to include TB decontamination (Provide policy).
- h) All personnel providing services for this contract have been tested for TB and are current in their TB test (Provide documentation).

- i) All drivers are properly licensed for the class of vehicle driven (Provide copy of all licenses).
- j) All drivers have a special transportation service vehicle permit, or endorsement issued by the commissioner of public safety (Provide documentation).

All drivers have successfully completed the standard and advanced first aid course of the American Red Cross of US Bureaus of Mines or equivalent (Provide documentation).

- k) All drivers are capable of providing necessary medical assistance to the attending Emergency Medical Technician (EMT) or Critical Care Transport Paramedic (CCTP/Provide documentation).
- l) All drivers are capable of administering oxygen (Provide documentation).
- m) Proof that all ambulances meet all applicable federal, state, and local regulations and specifications, including, but not limited to licensing, registration, and safety standards.
- n) All EMTs providing services on the contract are properly certified (Provide certifications).
- o) All EMTs and CCTPs have completed training IAW the standards published by the Department of Health and Human Services with a minimum of 150 hours or equivalent including an in-hospital training period [All training programs must be acceptable under the regulating requirements for local EMS systems supported by DHHS under PL 93-154, Federal Register 39L24304 (1974/Provide documentation)].
- p) All medical personnel providing services on the contract are properly certified and licensed (Provide all certifications and licenses).
- q) That the contractor is capable of transporting drugs and/or equipment listed in Attachment A of the PWS.
- r) At least three (3) past performance references using the Past Performance Questionnaire (pg. 61-62)
- s) VA Form 10091, FMS Vendor File Request Form
- t) Form W-9, Request for Taxpayer Identification Number and Certification.

Proposals shall be submitted on a SF1449 by email to **michael.williams48@va.gov** by **March 31, 2025 @ 3:00 pm PST** and will be accepted by the Government at the time the email is delivered to the Government email server. Proposals must also be in PDF, and compatible with Microsoft Office Software to be accepted. The Contractor submitting a Proposal is responsible for ensuring that the Contract Specialist has received the Proposal before the deadline for receipt of Proposals, and the government will not be responsible for delays or failures or either the contractor's email system or the Government's email system. Facsimile offers will not be accepted.

The Offeror agrees to hold the prices in its offer firm for 90 calendar days from the date specified for receipt of offers.

Email all questions to **michael.williams48@va.gov** no later than **March 21, 2025 @ 3:00 pm (PST)**. The Government reserves the right to not answer questions not meeting this timeline if doing so would result in an amendment requiring an extension of the solicitation and the extension would not be in the best interest of the Government. All responses to questions will be posted on Federal Business Opportunities. Incorporated by reference (by Citation Number, Title, and Date), have the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available.

(End of Provision)

E.2 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>

<https://www.va.gov/oal/library/vaar/>

(End of Provision)

<u>FAR Number</u>	<u>Title</u>	<u>Date</u>
52.201-1	ACQUISITION 360: VOLUNTARY SURVEY	SEP 2023
52.204-7	SYSTEM FOR AWARD MANAGEMENT	OCT 2018
52.204-16	COMMERCIAL AND GOVERNMENT ENTITY CODE REPORTING	AUG 2020
52.204-20	PREDECESSOR OF OFFEROR	AUG 2020
52.217-3	EVALUATION EXCLUSIVE OF OPTIONS	APR 1984

E.3 52.204-24 REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it “does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument” in paragraph (c)(1) in the provision at 52.204–26, Covered Telecommunications Equipment or Services—Representation, or in paragraph (v)(2)(i) of the provision at 52.212–3, Offeror Representations and Certifications—Commercial Products and Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it “does not use covered telecommunications equipment or services, or any equipment, system, or

service that uses covered telecommunications equipment or services” in paragraph (c)(2) of the provision at 52.204–26, or in paragraph (v)(2)(ii) of the provision at 52.212–3.

(a) *Definitions.* As used in this provision—

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204–25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Prohibition.* (1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115–232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115–232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for “covered telecommunications equipment or services.”

(d) *Representations.* The Offeror represents that—

(1) It [] will, [] will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument

resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds “will” in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that—

It [] does, [] does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds “does” in paragraph (d)(2) of this section.

(e) *Disclosures.* (1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded “will” in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded “does” in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of Provision)

E.4 52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018)

(a) *Definitions.* As used in this provision—

"Administrative proceeding" means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

"Federal contracts and grants with total value greater than \$10,000,000" means—

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

"Principal" means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror [] has [] does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in—

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of Provision)

E.5 52.216-1 TYPE OF CONTRACT (APR 1984)

The Government contemplates award of an Indefinite Delivery, Indefinite Quantity, firm-fixed price contract resulting from this solicitation.

(End of Provision)

E.6 52.233-2 SERVICE OF PROTEST (SEP 2006)

Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from:

Jarrod Washington

Michael Williams

Electronic Delivery Address:

michael.williams48@va.gov

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of Provision)

E.6 VAAR 852.233-71 ALTERNATE PROTEST PROCEDURE (OCT 2018)

(a) As an alternative to filing a protest with the Contracting Officer, an interested party may file a protest by mail or electronically with: Executive Director, Office of Acquisition and Logistics, Risk Management and Compliance Service (003A2C), Department of Veterans Affairs, 810 Vermont Avenue NW, Washington, DC 20420 or Email: *EDProtests@va.gov*.

(b) The protest will not be considered if the interested party has a protest on the same or similar issue(s) pending with the Contracting Officer.

E.7 VAAR 852.233-71 ALTERNATE PROTEST PROCEDURE (OCT 2018)

(a) As an alternative to filing a protest with the Contracting Officer, an interested party may file a protest by mail or electronically with: Executive Director, Office of Acquisition and Logistics, Risk Management and Compliance Service (003A2C), Department of Veterans Affairs, 810 Vermont Avenue NW, Washington, DC 20420 or Email: *EDProtests@va.gov*.

(b) The protest will not be considered if the interested party has a protest on the same or similar issue(s) pending with the Contracting Officer.

(End of Provision)

(End of Addendum to 52.212-1)

E.8 52.212-2 EVALUATION—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2021)

a) Using the trade-off process, the Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the government, price, and other factors considered. The following factors shall be used to evaluate offers:

1. Price
2. Past Performance
3. Technical Capability

Technical Capability is equal with Past Performance, Technical and Past Performance, when combined are significantly more important than price, however price is still an important factor and can be the determining factor in making the award.

(b) Options: The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

ADDENDUM TO EVALUATIONS – COMMERCIAL ITEMS

EVALUATION PROCESS: Upon receipt of proposals, the Contracting Specialist will perform an initial screening to ascertain that each offeror has submitted all of the required information in the quantities and formats specified in the RFP. If the Contract Specialist finds that the proposal fails to furnish the required information specified in sections E.1, FAR 52.212-1, Instructions to Offeror's-Commercial Items and E-13, FAR 52.212-2 Evaluation-Commercial Items, Addendum to Evaluations, the proposal may be excluded from consideration. If the proposal is excluded from consideration, the Contracting Officer will notify the Contractor of the decision.

The proposal packages will be forwarded to the Source Selection Evaluation Board. An overall assessment of merit of each proposal will be derived from the evaluation of the proposal as it relates to each factor/subfactor in this solicitation. A narrative explanation will be provided to support the adjectival ratings for the Technical Capability, Past Performance, and Price factors. Results of the source-selection process will be documented in accordance with the requirements of the Source Selection Plan (SSP). The evaluation process will consider the Offeror's understanding of the requirement as identified in the Performance Work Statement (PWS) and the extent to which the proposed approach is workable and the end results achievable.

Evaluation members will independently evaluate each proposal first and come to a group consensus prior to submitting their evaluations to the Contract Specialist. list. If clarifications are required, evaluators will submit their questions to the Contract Specialist for offeror response. Individual evaluators will be provided responses to the clarification and given an opportunity to complete their rating for that particular Contractor.

If no clarifications are required, evaluators will submit their worksheets, including the group consensus to the Contract Specialist. The Contract Specialist will conduct an evaluation on Price and Past Performance and determine if an offer can be recommended for award without further discussion.

If discussions are necessary, The Contract Specialist will conduct negotiations and request final revised proposals. If further evaluations are required, repeat the same process as in the paragraphs above.

FACTOR 1: PRICE

The purpose of the price evaluation is to determine whether an Offeror's proposed prices are reasonable. The Contracting Officer shall ultimately make any subsequent award to the Offeror whose proposal is determined to represent the overall value to the government.

FACTOR 2: PAST PERFORMANCE:

Past Performance Evaluation. Past performance evaluation results in an assessment of the offeror's probability of meeting the solicitation requirements. It considers each offerors demonstrated recent and relevant record of performance in supplying services that met the contract requirements. There are two aspects to the past performance evaluation:

1. Relevancy of contractual work performed; and
2. How well the contractual work was performed.

The first is to evaluate the offeror's past performance to determine how relevant a recent effort accomplished by the offeror is to the effort to be acquired through the source selection. Common aspects of relevancy include similarity of service/support, complexity, dollar value, contract type, and degree of subcontract/team.

The second aspect of evaluating past performance is to determine how well the contractor performed on past/and or current contracts by gathering customer information on how well the offeror performed on the contracts. The past performance evaluation performed in support of a current source selection does not establish, create, or change the existing record and history of the offeror's past performance on past contracts; rather, the past performance evaluation process gathers information from customers on how well the offeror performed those past contracts.

Past Performance Information for Evaluation can be obtained from any source available to the Government, including, but not limited to:

- Contractor Performance Assessment Reporting System (CPARS)
- Federal Awardee Performance and Integrity Information System (FAPIIS),
- Offerors (as solicited).
- Contracting Officers
- Questionnaires tailored to the circumstances of the acquisition.

In the case of an offeror without a record of relevant past performance or for whom information on past performance is not available or so sparse that no meaningful past performance rating can be reasonably assigned, the offeror may not be evaluated favorably or unfavorably on past performance (see FAR 15.305 (a)(2)(iv)). Therefore, the offeror will be determined to have neutral past performance.

FACTOR 3: TECHNICAL CAPABILITY:

The review and rating of the Technical Capability package will focus on the following sub-factors in descending order of importance. Along with required submittals, an Offeror's technical solution shall be described in sufficient detail to evaluate compliance of all requirements in the solicitation. The vehicle inspection will use Go/No Go criteria to determine if requirements are met.

- Technical Expertise (ten-page limitation)
Description of the Contractor's technical approach to perform ALL TASKS. The Contractor must demonstrate its ability to undertake the PWS requirements from award to completion.
- Related Experience (fifteen page-limitation)
Contractor shall demonstrate its expertise in providing assistance comparable to the tasks described in the PWS. The following information must be included: Overview of the Contractor's background and organizational history, including number of years in operation, total number of employees, a description of services provided (past and

present), and types of programs operated (past and present). A description of any material legal proceedings against the Contractor by any Federal or State regulatory agencies that would impact an engagement of this nature. Including any tax matters deferred and/or currently paying. Description of the Contractor's organizational competencies and/or areas of expertise related to the provision of the tasks described in the PWS.

- **Vehicle Inspection: Go/No-Go**
Inspection of provider's ALS, BLS, and CCT transport vehicles and associated equipment prior to award.
- **Key Positions (no page limitation)**
Identification of all positions proposed to work on this contract, including a project manager with overall responsibility for coordinating the work to be completed under this contract. For all positions, identify their roles and responsibilities, and the personnel skills, training and experience to perform the identified tasks.
- **Quality Control Plan.**
The Offeror's proposed quality control plan (QCP) will be evaluated for relevance as will the Offeror's identification and demonstrated understanding of key quality control elements important to oversight and surveillance of the work.

E.9 52.212-3 OFFEROR REPRESENTATIONS AND CERTIFICATIONS— COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (MAY 2024)

The Offeror shall complete only paragraph (b) of this provision if the Offeror has completed the annual representations and certification electronically in the System for Award Management (SAM) accessed through <https://www.sam.gov>. If the Offeror has not completed the annual representations and certifications electronically, the Offeror shall complete only paragraphs (c) through (v) of this provision.

(a) *Definitions.* As used in this provision—

Covered telecommunications equipment or services has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR 127, and the concern is identified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business eligible under the WOSB Program.

Forced or indentured child labor means all work or service—

(1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or

(2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: Ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

Inverted domestic corporation means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except—

- (1) PSC 5510, Lumber and Related Basic Wood Materials;
- (2) Product or Service Group (PSG) 87, Agricultural Supplies;
- (3) PSG 88, Live Animals;
- (4) PSG 89, Subsistence;
- (5) PSC 9410, Crude Grades of Plant Materials;
- (6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;
- (7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
- (8) PSC 9610, Ores;
- (9) PSC 9620, Minerals, Natural and Synthetic; and
- (10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.

Reasonable inquiry has the meaning provided in the clause 52.204–25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of

military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

- (1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
- (2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
- (3) Consist of providing goods or services to marginalized populations of Sudan;
- (4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
- (5) Consist of providing goods or services that are used only to promote health or education; or
- (6) Have been voluntarily suspended.

Sensitive technology—

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—

- (i) To restrict the free flow of unbiased information in Iran; or
- (ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern—

(1)(i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran; or

(2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).

(3) *Service-disabled veteran*, as used in this definition, means a veteran as defined in 38 U.S.C. 101(2), with a disability that is service-connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor

system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that—

- (1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or
- (2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern—

- (1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and size standards in this solicitation.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that—

- (1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by—

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

- (2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Subsidiary means an entity in which more than 50 percent of the entity is owned—

- (1) Directly by a parent corporation; or
- (2) Through another subsidiary of a parent corporation.

Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term “successor” does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

Veteran-owned small business concern means a small business concern—

(1) Not less than 51 percent of which is owned and controlled by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned business concern means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women.

Women-owned small business concern means a small business concern—

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)(1) Annual Representations and Certifications. Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.

(2) The offeror has completed the annual representations and certifications electronically in SAM accessed through <http://www.sam.gov>. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR 52.212–3, Offeror Representations and Certifications—Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see FAR 4.1201), except for paragraphs .

(c) Offerors must complete the following representations when the resulting contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or

when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii). Check all that apply.

(1) *Small business concern.* The offeror represents as part of its offer that—

(i) It ☐ is, ☐ is not a small business concern; or

(ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.*]

(2) *Veteran-owned small business concern.* [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents as part of its offer that it ☐ is, ☐ is not a veteran-owned small business concern.

(3) *SDVOSB concern.* [*Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.*] The offeror represents that it ☐ is, ☐ is not an SDVOSB concern.

(4) *SDVOSB concern joint venture eligible under the SDVOSB Program.* The offeror represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [*Complete only if the offeror represented itself as an SDVOSB concern in paragraph (c)(3) of this provision.*] [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.*]

(5) *Small disadvantaged business concern.* [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents that it ☐ is, ☐ is not a small disadvantaged business concern as defined in 13 CFR 124.1001.

(6) *Women-owned small business concern.* [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents that it ☐ is, ☐ is not a women-owned small business concern.

(7) *WOSB joint venture eligible under the WOSB Program.* [*Complete only if the offeror represented itself as a women-owned small business concern in paragraph (c)(5) of this provision.*] The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.*]

(8) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR part 127.506(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.*]

Note to Paragraphs (c)(9) and (10): Complete paragraphs (c)(9) and (10) only if this solicitation is expected to exceed the simplified acquisition threshold.

(9) *Women-owned business concern (other than small business concern).* [*Complete only if the offeror is a women-owned business concern and did not represent itself as a small business*

concern in paragraph (c)(1) of this provision.] The offeror represents that it [] is a women-owned business concern.

(10) *Tie bid priority for labor surplus area concerns.* If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or first-tier subcontractors) amount to more than 50 percent of the contract price:

(11) *HUBZone small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that—

(i) It [] is, [] is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

(ii) It [] is, [] is not a HUBZone joint venture that complies with the requirements of 13 CFR Part 126.616(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) Representations required to implement provisions of Executive Order 11246—

(1) *Previous contracts and compliance.* The offeror represents that—

(i) It [] has, [] has not participated in a previous contract or subcontract subject to the Equal Opportunity clause of this solicitation; and

(ii) It [] has, [] has not filed all required compliance reports.

(2) *Affirmative Action Compliance.* The offeror represents that—

(i) It [] has developed and has on file, [] has not developed and does not have on file, at each establishment, affirmative action programs required by rules and regulations of the Secretary of Labor (41 CFR parts 60-1 and 60-2), or

(ii) It [] has not previously had contracts subject to the written affirmative action programs requirement of the rules and regulations of the Secretary of Labor.

(e) *Certification Regarding Payments to Influence Federal Transactions* (31 U.S.C. 1352). (Applies only if the contract is expected to exceed \$150,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete

and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(f) *Buy American Certificate*. (Applies only if the clause at Federal Acquisition Regulation (FAR) 52.225-1, Buy American—Supplies, is included in this solicitation.)

(1)(i) The Offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product and that each domestic end product listed in paragraph (f)(3) of this provision contains a critical component.

(ii) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select “no”.

(iii) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

(iv) The terms “commercially available off-the-shelf (COTS) item,” “critical component,” “domestic end product,” “end product,” “foreign end product,” and “United States” are defined in the clause of this solicitation entitled “Buy American—Supplies.”

(2) Foreign End Products:

Line item No.	Country of origin	Exceeds 55% domestic content (yes/no)

[List as necessary]

(3) Domestic end products containing a critical component: Line Item No. _____

[List as necessary]

(4) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(g)(1) *Buy American—Free Trade Agreements—Israeli Trade Act Certificate*. (Applies only if the clause at FAR 52.225-3, Buy American—Free Trade Agreements—Israeli Trade Act, is included in this solicitation.)

(i)(A) The Offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (iii) of this provision, is a domestic end product and that each domestic end product listed in paragraph (g)(1)(iv) of this provision contains a critical component.

(B) The terms “Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product,” “commercially available off-the-shelf (COTS) item,” “critical component,” “domestic end

product,” “end product,” “foreign end product,” “Free Trade Agreement country,” “Free Trade Agreement country end product,” “Israeli end product,” and “United States” are defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act.”

(ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act.”

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or Israeli End Products:

Line item No.	Country of origin

[List as necessary]

(iii) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act.” The Offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select “no”.

Other Foreign End Products:

Line item No.	Country of origin	Exceeds 55% domestic content (yes/no)

[List as necessary]

(iv) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see FAR 25.105). Line Item No. _____

[List as necessary]

(v) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(2) *Buy American—Free Trade Agreements—Israeli Trade Act Certificate, Alternate II.* If *Alternate II* to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Israeli end products as defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act”:

Israeli End Products:

Line item No.	Country of origin

[List as necessary]

(3) *Buy American—Free Trade Agreements—Israeli Trade Act Certificate, Alternate III.* If Alternate III to the clause at 52.225–3 is included in this solicitation, substitute the following paragraphs (g)(1)(i)(B) and (g)(1)(ii) for paragraphs (g)(1)(i)(B) and (g)(1)(ii) of the basic provision:

(g)(1)(i)(B) The terms “Korean end product”, “commercially available off-the shelf (COTS) item,” “critical component,” “domestic end product,” “end product,” “foreign end product,” “Free Trade Agreement country,” “Free Trade Agreement country end product,” “Israeli end product,” and “United States” are defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act.”

(g)(1)(ii) The Offeror certifies that the following supplies are Korean end products or Israeli end products as defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act”:

Korean End Products or Israeli End Products:

Line item No.	Country of origin

[List as necessary]

(4) *Trade Agreements Certificate.* (Applies only if the clause at FAR 52.225-5, Trade Agreements, is included in this solicitation.)

(i) The offeror certifies that each end product, except those listed in paragraph (g)(4)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled “Trade Agreements”.

(ii) The offeror shall list as other end products those end products that are not U.S.-made or designated country end products.

Other End Products:

Line item No.	Country of origin

[List as necessary]

(iii) The Government will evaluate offers in accordance with the policies and procedures of FAR Part 25. For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.

(h) *Certification Regarding Responsibility Matters* (Executive Order 12689). (Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals—

(1) ☐ Are, ☐ are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(2) ☐ Have, ☐ have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or Commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;

(3) ☐ Are, ☐ are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and

(4) ☐ Have, ☐ have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104–5(a)(2) for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:

(A) *The tax liability is finally determined.* The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(B) *The taxpayer is delinquent in making payment.* A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) *Examples.*

(A) The taxpayer has received a statutory notice of deficiency, under I.R.C. Sec. 6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. Sec. 6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. Sec. 6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. 362 (the Bankruptcy Code).

(i) *Certification Regarding Knowledge of Child Labor for Listed End Products (Executive Order 13126).*

(1) *Listed end products.*

Listed end product	Listed countries of origin

(2) *Certification. [If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.]*

[] (i) The offeror will not supply any end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product.

[] (ii) The offeror may supply an end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product. The offeror certifies that it has made a good faith effort to determine whether forced or indentured child labor was used to mine, produce, or manufacture any such end product furnished under this contract. On the basis of those efforts, the offeror certifies that it is not aware of any such use of child labor.

(j) *Place of manufacture.* (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly—

(1) ☐ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) ☐ Outside the United States.

(k) *Certificates regarding exemptions from the application of the Service Contract Labor Standards.* (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.) [The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.]

☐ (1) Maintenance, calibration, or repair of certain equipment as described in FAR 22.1003-4(c)(1). The offeror ☐ does ☐ does not certify that—

(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;

(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR 22.1003-4(c)(2)(ii)) for the maintenance, calibration, or repair of such equipment; and

(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

☐ (2) Certain services as described in FAR 22.1003-4(d)(1). The offeror ☐ does ☐ does not certify that—

(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;

(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR 22.1003-4(d)(2)(iii));

(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies—

(i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the Contracting Officer as soon as possible; and

(ii) The Contracting Officer may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.

(l) *Taxpayer Identification Number (TIN)* (26 U.S.C. 6109, 31 U.S.C. 7701). (Not applicable if the offeror is required to provide this information to SAM to be eligible for award.)

(1) All offerors must submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M, and implementing regulations issued by the Internal Revenue Service (IRS).

(2) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(3) *Taxpayer Identification Number (TIN)*.

☐ TIN: _____.

☐ TIN has been applied for.

☐ TIN is not required because:

☐ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

☐ Offeror is an agency or instrumentality of a foreign government;

☐ Offeror is an agency or instrumentality of the Federal Government.

(4) *Type of organization*.

☐ Sole proprietorship;

☐ Partnership;

☐ Corporate entity (not tax-exempt);

☐ Corporate entity (tax-exempt);

☐ Government entity (Federal, State, or local);

☐ Foreign government;

☐ International organization per 26 CFR 1.6049-4;

☐ Other _____.

(5) *Common parent.*

☐ Offeror is not owned or controlled by a common parent;

☐ Name and TIN of common parent:

Name _____.

TIN _____.

(m) *Restricted business operations in Sudan.* By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

(n) *Prohibition on Contracting with Inverted Domestic Corporations.*

(1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(2) *Representation.* The Offeror represents that—

(i) It ☐ is, ☐ is not an inverted domestic corporation; and

(ii) It ☐ is, ☐ is not a subsidiary of an inverted domestic corporation.

(o) *Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran.*

(1) The offeror shall email questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(2) *Representation and certifications.* Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its offer, the offeror—

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR 25.703–2(a)(2) with Iran’s Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 *et seq.*) (see OFAC’s Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if—

(i) This solicitation includes a trade agreements certification (e.g., 52.212–3(g) or a comparable agency provision); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products.

(p) *Ownership or Control of Offeror.* (Applies in all solicitations when there is a requirement to be registered in SAM or a requirement to have a unique entity identifier in the solicitation).

(1) The Offeror represents that it ☐ has or ☐ does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.

(2) If the Offeror indicates “has” in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code: _____.

Immediate owner legal name: _____.

(Do not use a “doing business as” name)

Is the immediate owner owned or controlled by another entity: ☐ Yes or ☐ No.

(3) If the Offeror indicates “yes” in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code: _____.

Highest-level owner legal name: _____.

(Do not use a “doing business as” name)

(q) *Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.*

(1) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, The Government will not enter into a contract with any corporation that—

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The Offeror represents that—

(i) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(r) *Predecessor of Offeror*. (Applies in all solicitations that include the provision at 52.204-16, Commercial and Government Entity Code Reporting.)

(1) The Offeror represents that it ☐ is or ☐ is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(2) If the Offeror has indicated “is” in paragraph (r)(1) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: ____ (or mark “Unknown”).

Predecessor legal name: ____.

(Do not use a “doing business as” name).

(s) [Reserved]

(t) *Public Disclosure of Greenhouse Gas Emissions and Reduction Goals*. Applies in all solicitations that require offerors to register in SAM (12.301(d)(1)).

(1) This representation shall be completed if the Offeror received \$7.5 million or more in contract awards in the prior Federal fiscal year. The representation is optional if the Offeror received less than \$7.5 million in Federal contract awards in the prior Federal fiscal year.

(2) Representation. [Offeror to check applicable block(s) in paragraph (t)(2)(i) and (ii)]. (i) The Offeror (itself or through its immediate owner or highest-level owner) ☐ does, ☐ does not publicly disclose greenhouse gas emissions, i.e., makes available on a publicly accessible Web site the results of a greenhouse gas inventory, performed in accordance with an accounting standard with publicly available and consistently applied criteria, such as the Greenhouse Gas Protocol Corporate Standard.

(ii) The Offeror (itself or through its immediate owner or highest-level owner) ☐ does, ☐ does not publicly disclose a quantitative greenhouse gas emissions reduction goal, i.e., make available on a publicly accessible Web site a target to reduce absolute emissions or emissions intensity by a specific quantity or percentage.

(iii) A publicly accessible Web site includes the Offeror's own Web site or a recognized, third-party greenhouse gas emissions reporting program.

(3) If the Offeror checked "does" in paragraphs (t)(2)(i) or (t)(2)(ii) of this provision, respectively, the Offeror shall provide the publicly accessible Web site(s) where greenhouse gas emissions and/or reduction goals are reported:_____.

(u)(1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(3) Representation. By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(v) *Covered Telecommunications Equipment or Services—Representation.* Section 889(a)(1)(A) and section 889(a)(1)(B) of [Public Law 115-232](#).

(1) The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(2) The Offeror represents that—

(i) It ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(ii) After conducting a reasonable inquiry for purposes of this representation, that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of Provision)